

NEW SERIES.]

[NO 3

THE JOURNAL
OF
PRISON DISCIPLINE
AND
PHILANTHROPY.

PUBLISHED ANNUALLY
UNDER THE DIRECTION OF "THE PHILADELPHIA SOCIETY FOR
ALLEVIATING THE MISERIES OF PUBLIC PRISONS,"
INSTITUTED 1787.

JANUARY, 1864.

PHILADELPHIA:
J. R. CHANDLER, BOOK AND JOB PRINTER,
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The Journal of Prison Discipline and Philanthropy

CONSTITUTION

OF THE

Philadelphia Society for Alleviating the Miseries of Public Prisons.

When we consider that the obligations of benevolence which are founded on the precepts and examples of the Author of Christianity, are not cancelled by the follies or crimes of our fellow-creatures; and when we reflect upon the miseries which penury, hunger, cold, unnecessary severity, unwholesome apartments, and guilt, (the usual attendants of prisons,) involve with them, it becomes us to extend our compassion to that part of mankind who are the subjects of those miseries. By the aid of humanity, their undue and illegal sufferings may be prevented; the links which should bind the whole family of mankind together, under all circumstances, be preserved unbroken; and such degrees and modes of punishment may be discovered and suggested, as may, instead of continuing habits of vice, become the means of restoring our fellow-creatures to virtue and happiness. From a conviction of the truth and obligation of these principles, the subscribers have associated themselves under the title of “THE PHILADELPHIA SOCIETY FOR ALLEVIATING THE MISERIES OF PUBLIC PRISONS.”

For effecting these purposes, they have adopted the following
CONSTITUTION.

ARTICLE I.

The officers of the Society shall consist of a President, two Vice-Presidents, two Secretaries, a Treasurer, two Counsellors, and an Acting Committee; all of whom shall be chosen at the stated meeting to be held in the first month (January) of each year, and shall continue in office until their successors are elected; but in case an election, from any cause, shall not be then held, it shall be the duty of the President to call a special meeting of the Society within thirty days, for the purpose of holding such election, of which at least three days' notice shall be given.

ARTICLE II.

The President shall preside in all meetings, and subscribe all public acts of the Society. He may call special meetings whenever he may deem it expedient; and shall do so when requested in writing by five members. In his absence, one of the Vice-Presidents may act in his place.

ARTICLE III.

The Secretaries shall keep fair records of the proceedings of the Society, and shall conduct its correspondence.

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Rooms of the Philadelphia Society for Alleviating the Miseries of Public Prisons. }

At a meeting of the Acting Committee of the Philadelphia Society for Alleviating the Miseries of Public Prisons, held on the evening of the First Month, (January) 21, 1864, the Editorial Board, (appointed to take charge of the Journal and papers, and the Annual Report,) consisting of Joseph R. Chandler, James J. Barclay, Edward H. Bonsall, and James M. Corse, M. D.,^[1] presented the Annual Report, which, having been considered and approved, was ordered to be transmitted to the Society.

- ^{1.} It may be proper to state that Townsend Sharpless, one of the Vice-Presidents of the Society, was appointed on this Board, but was prevented by sickness from taking part in its labors, and he died before the Report was made to the Acting Committee.

At the Annual Meeting of the Society, held First Month, (January) 28, 1864, the Report of the “Acting Committee.” was presented, and after consideration, was referred back to the Acting Committee, with instructions to cause the whole (or such parts thereof as might be deemed best) to be printed in the usual form, with any other matter that should be thought advisable.

At a meeting of the Acting Committee, Second Month (February) 11, 1864, it was ordered that the Annual Report, signed by the President and Secretary, be referred to the members by whom it was proposed, with instructions to them to cause a suitable number of copies thereof to be printed.

JOHN J. LYTLE, *Secretary.*

REPORT.

In presenting the Report of the Seventy-Eighth Year of the labors of “The Philadelphia Society for Alleviating the Miseries of Public Prisons,” we are struck with what in this country may be regarded as a remarkable instance of longevity. Few benevolent societies in the United States survive their founders. Some effect a certain object and are allowed to fall into uselessness and disorganization. Others arise, with kindred purposes and similar means, and produce other good with an advantage of new zeal and fresh machinery. In Europe numerous philanthropic associations have outlived their usefulness, not so much from a diminution of the numbers that need aid, as from changes in their circumstances. The funds do not fail, but the right to apply them, in the changed condition of society, has ceased. The continued existence of the association is secured by the capital upon which it was founded, and the lumbering machinery is annually reviewed by those charged with its custody, and it is then consigned to another year’s seclusion and repose. The dust of antiquity settles upon it, to give it an interest with some, but the idea of usefulness is no longer entertained.

In many of the cases of defunct associations in *this* country, the wrongs or sufferings that suggested their organization were only temporary, and with the accomplishment of their objects they ceased to exist, or they have given place to others better adapted to the good ends proposed. Most of the still remaining inoperative associations of the old world were called into existence by permanent evils, but their usefulness was made temporary by certain fixed requirements that were soon to render them inapplicable to the changes in the political, religious and social condition of the people. But “The Philadelphia Society for Alleviating the Miseries of Public Prisons,” has before it a work, which though it may vary with time, is not likely to lessen. While society exists we shall have vice and crime; while vice and crime abound we must have prisons to restrain the violators of the laws; and while prisons have inmates, the duty of reforming their morals and

ameliorating their condition, will devolve upon some of those who seek the good of society by the improvement of individuals. That duty in its broadest sense has been assumed by this Association. Not merely to lessen the sufferings of the condemned, not alone to assist the innocent, not merely to teach sound morals to those who are suffering from a violation of the laws of God and man, not merely to prevent a too rigid enforcement of special enactments, not alone to prescribe and ensure a separate confinement to the condemned, but so to use that confinement that vice or crime, so communicable in its character, shall not propagate itself through the cells of the prison, and thus make a penitentiary a nursery for misconduct rather than a school for mental and moral discipline; not alone to deal justly and faithfully with a convict while he occupies his cell, but to secure to him, when he shall have completed his penal term, some position in which he may carry into effect his good resolves, without incurring risk from those associates that led him into crime, and especially to secure him from recognition in the world by those who have passed months or years of separate confinement in the same prison with him. We repeat it, it is no one of these measures that is the single or even the great object of the Society. It is every one of them, separate, or all of them combined, with whatever else may present itself for alleviation or correction in the affairs of prisons or the condition of prisoners. Nor is this all; while this Society has in view the whole of these and other benefits, it is no less its intention to continue its labor of benevolence as much upon the fruit of its own existence as upon the evils which it was organized to ameliorate. The Philadelphia Society for Alleviating the Miseries of Public Prisons, will accommodate its labors to the new state which its exertions may have produced, and, thus, what has been improved to-day may be perfected to-morrow. Nor does it escape the notice of the Society that new work is presented or new forms of labor are suggested as the system which it produces becomes more and more operative. The vicious are to be reclaimed by gentle exhortations and encouraging sympathy. The young criminal is, by kind monitions and encouraging confidence, to be lured from the path into which he has been seduced, and the felon is to be made to understand that there is a hope of regaining the respect of society by that repentance which consists as much in reparation for the wrong and resolves for the future, as in regret for the past; or, failing to acquire for himself the forfeited regard of his fellow men, he may secure a hope of a better rest. True philanthropy seems but the

embodiment of religion, and never do the consolations of the Divine promises operate with greater efficacy than when they are poured upon the heart of the convict in the solitude of his cell.

In claiming for the Association such an extensive field and such a variety of labors, we do not overrate its plans nor over-estimate its means and devotion. It may safely be said that as no circumstances of the prisoner are beyond the aim of the Society, so no class of prisoners are excluded from its benevolent intentions. The visitor of the Society when he presents himself at the cell of the prisoner, is not to be deterred by the rank, grade, condition or color of the prisoner. Nor are his efforts to be lessened by any circumstances of his case. We must say with the Roman,

“Homo sum; et humani a me nil alienum puto.”

I am a man, and nothing which relates to man can be foreign to my bosom.

And it is a part of the qualification of the visitor of the Society, that he can accommodate himself and his ministrations to the varied circumstances of the occupants of the cell, becoming all things to all classes, that he may gain access to their confidence. Failing in all this, as almost any one must come short of some of the objects of his charitable effort, it is a part of the wisdom and prudence of the representatives of the Society to discern their own want of adaptation to the peculiar circumstance of the prisoner, and call in the aid of those who by different gifts, by other attainments, or higher functions may be better qualified to meet the wants of a particular case.

The Philadelphia Society for Alleviating the miseries of Public Prisons, is known by its works. It desires to be judged according to those works. Some of the Society's efforts have obtained for it European fame, while a part of its labors are of so humble a class as to be little known beyond the cell of the vagrant, or in the small circle of which such a beneficiary may form a part. The great system that seems to concern all mankind, that of separate confinement, is discussed, understood, and partially practised in Europe, and if it is not general, the cause is not so much a want of confidence in the system as a want of the deep, practical interest in the unfortunate victims, which should lead governments and legislators to incur the expense of erecting buildings, especially for penal purposes, adapted to the idea of

separate confinement and special discipline, as substitutes for those prisons which are only modifications of antiquated palaces, abandoned convents, or delapidated baronial castles. Even the houses that were constructed for prisons owe their erection in many cases to a time when confinement and cruelty were the means of public or private vengeance, and when the convicted felon became an outcast for life, or rather when the conviction of felony was the Cain mark for perpetual infamy.

The Society is represented in its labors at the prisons in Philadelphia by two Committees. The duties of one of which are confined to the Eastern Penitentiary, in Coates street; the other committee is appointed to labor at the County Prison, in Moyamensing. These two committees are really practical operatives. They have little to do with theories or plans. Their work is in the cells of the prisoners or at the doors of the cells, and their dealings are directly with the individual.

In the experience of the visitors of the Society to the two prisons, there is necessarily great difference arising out of the different circumstances of the inmates of the County Prison and those of the Eastern Penitentiary. In the latter the length of incarceration and the closeness of the application of the rule of separate confinement, seems to break up so entirely the relations of the prisoner with the world from which he is banished, that many seem willing to listen to the admonition of visiting friends, and to accept the invitation to review their lives and to form resolves of future amendment. Not merely do the monitions and invitations, of the visitors to the cells, lead prisoners to promises of good, but the isolation of their condition and a want of outward objects to strike their senses and occupy their minds induce them to thought, to meditation, and lead them to the commencement of that reformation, or, at least those solemn resolves of reformation which are the object of their imprisonment. It can scarcely be doubted, that almost every prisoner in the Penitentiary who has been frequently visited by those who evince an anxiety for his temporal and spiritual good, has been led to resolve to refrain from the crimes which placed him in prison, and to seek a maintenance in the world by means which that world sanctions and which God approves; but it is certain that a large portion of those who thus resolve, find it easier on their return to the world to resume their associations and habits and to become three fold more offenders against the laws than they had been. In vice and crime there is no halting, they are

progressive; he who has yielded to their influence must be carried forward with their advancement, or he must renounce entirely their influence. The *arts* of crime are like all other arts by which a man undertakes to acquire position or a living; they demand advancement. Pride in success leads to undertakings of difficulty, and he who enters a jail a “sneaking thief,” may be stimulated by professional emulation to advance in crime till he attains the dignity of a penitentiary cell for some boldly executed robbery, or some brilliant act of extensive forgery. The released half converted criminal feels all this, but he feels the difficulty of relinquishing plans of life which seem to have been divested of a part of their chances of defeat by the very imprisonment into which they led him; and, as a resolution to reform does not always include the means by which virtuous living may be obtained, the outgoing prisoner finds in his circumstances an excuse for violating the resolutions of good, or postponing their fulfilment till at length he becomes involved in the same labyrinth of difficulties and crimes that caused his former incarceration. Is he then to be neglected? Is he then to be cast off? Is he then to be marked as one who has forfeited, with the esteem of the good, the right to the cares of the good? The Great Master of benevolence gave no such advice, nor did He sanction such conduct by example. He to whom all hearts are open, and who, aware of the evils and hostility of vice and ambition, at once their object and their pardoner, He never but once refused time and attention to the profitless; and His only positive direct malediction was upon the unfruitful fig-tree that had outlived its time of usefulness, and which, under His frown, withered into a leafless and lifeless condition, that could experience no resuscitation.

If we confess, as we must, that much of the evils which we deplore in the prisoner, is the result of adverse circumstances, then we must also admit that he may owe a future reform or repentance to some favorable circumstance, to that circumstance which the thoughtless and the infidel deem the providence of man’s fate, but which reason and religion declare to be the instrument of God’s care of his creatures. It is the duty of the philanthropist to provide for such a contingency, to have in the mind of the offender an appreciation of wrong and right, so that when unexpectedly the *circumstance* occurs, there may be a knowledge of its capabilities and a readiness to improve it.

In preparing this Report, reference was had to the fact, that some of the great objects of the Society have already been discussed in every light, and with masterly effect. Essays given in the publications of the Society, from men of distinguished talent, have been productive of great good in strengthening the confidence of active members, and in removing prejudices from the minds of those who lacked experience to correct false impressions.

The great system of separate confinement has been presented to the public in a most convincing paper, by an able writer of this city, so that, for the present, it seems only necessary, in our Annual Report, to make a short reference to the system, and then to allow a statement of the proceedings of the Society to illustrate its effect.

It is the object, then, in the *present* Report, rather to make known the details of proceedings, than to announce the abstract views upon which action is founded; to give up this Annual Report to a presentation of the mode of procedure; to a detail of the daily duties of the active members and agents; to a consideration of some of the antagonistic circumstances that hinder our progress, and to the means upon which reliance must be placed in efforts to alleviate the miseries of prisons.

In attempting to present the report under various heads, it was found difficult to avoid a repetition of argument and explanation, or rather, having made the repetition, it was found difficult to correct the text without impairing the fulness of that part of the subject. Indeed, when it is considered that with the exception of enlightening the public mind, to procure co-operation, and soliciting legislative enactments to enable the Society to act more beneficially upon prisons, and through them on the prisoner, the great work of alleviating the miseries of public prisons, is to be upon the minds of individuals, we shall comprehend how all the divisions of the actions of the Society centre upon the single prisoner. Not for sympathy alone, but for amendment, must we “take a single captive,” and so, in reporting upon the action of the Agent; upon the doings of the various Committees; in setting forth the success, or want of success, at the Penitentiary or the County Prison; in referring to the movements on behalf of males or females; in the plans for future action, as on the records of the past, it is the incarcerated individual, it is the single mind whose experience we are to record, or whose susceptibilities we are to note. Hence it has

seemed almost natural, at least it is hoped that it will be regarded as excusable, that what is the great means of all our hopes of alleviating the miseries of prisons, viz., separate confinement, and consequently individual dealing, should pervade every division of the report of our proceedings.

SEPARATE CONFINEMENT.

The distinguishing feature of the discipline which this Society has advocated for Penitentiaries, is that which the world misrepresents by denominating it *solitary* confinement, and which it discredits by arguments founded not on past experience, but resting upon the probable effects upon the minds of the prisoners of total solitude and utter separation from association, sight and converse with man. We do not pretend to say what would be the effect of such a condition. Our object is not the condemnation of an untried system, but the exposition of the benefits of that which has been well tested. The amelioration not the augmentation of prison discipline is the object of our Association. The permanent benefit of society through the improvement of individuals, or the eternal benefit of individuals, by making the prison a school of reform rather than a place of torture. Separate confinement is the object that has been proposed—and wherever obtained, it has produced, if not all the good which had been hoped for, at least more than any other system that has been adopted, and has satisfied those who are engaged officially or voluntarily in its administration, that its benefits are progressive. By the separation of the convict from his fellow criminals, he is taken from the concerted plans and practices of crime, and placed where none may approach him but officers charged with the care of his person, or those who visit his cell with messages of kindness. People who, sensible of his guilt, but hopeful of his reformation, approach him in a spirit of kindness, and, satisfying him that they seek his good, and not their own benefit, gain admittance to his heart, win his confidence, and produce, perhaps, solemn resolutions to amend. He sees, in the narrow confines of his cell, and he feels, in the strictness of the discipline to which he is subjected, the terrors of the violated law. But he comprehends, in the oft-repeated lessons of love that are given to him by the Society's visitors, that, prone as he is to crime, he is the object of human solicitude and the subject of divine mercy. And in time he understands also, that, had he been released

with the first resolution to repent, he would have missed of reform. He comprehends that time and retirement were necessary to the germination of the seeds which had been planted in his heart, and a long season of abstraction from society could alone have matured the fruits of repentance. Solitude—entire solitude—might have embittered his heart against the social compact by which he was suffering. He may have had learning, but he probably lacked that moral education, that culture of the heart, by which he could easily discern the rightful dependence of punishment on crime, or his responsibility to society for the talents he possessed, and the uses to which he applied them. In utter loneliness, he would have brooded over his privations, and, recalling the hundreds whom he knew equally guilty, but wholly unpunished, he would have regarded his condition as of special, unequalled, and gross injustice, and might have sought liberty and life to revenge himself on man; or, wearying of existence, and despairing of relief, he would have “cursed God and died.” Utter solitude to the ignorant and the bad is rarely productive of benefit. Solitude may be the occasion and the means of beneficial progress to the good. It may enable the repentant to avoid the errors which have injured him and by which he has injured others, and it may enable him to work out his own benefit, doing good to himself, but not communicating it to others. The whirlwind of passion disturbs the solitude, but God and good are not in the disturber. The small still voice of reason and revelation calls him to repentance, but he cannot understand. Like the child Samuel, he hears the call, but until there be some one to instruct him how to respond, he remains in his darkness, unimproved.

But solitary confinement we have said is not recommended by the Society. That species of penalty might be as cruel to the convict as the associated imprisonment is unjust to society. We would have all penalties so tempered with mercy, that they should lead naturally and certainly to improvement. We condemn any sentence to utter solitude, as heartily as we do that to a social imprisonment, whereby pecuniary compensation to the State takes the place of moral improvement in the prisoner, and where day by day former associates in vice become schemers for future depredations and teachers of the means of crime to the neophyte in wrong doing.

The separate confinement which constitutes the peculiar character of prison discipline advocated by the Society and practised in the Eastern Penitentiary of Pennsylvania, has reference to the separation of one convict

from another, and of separation of the criminal from that intercourse with people from without that might keep up his relation with criminals and his taste and his resolutions for crime. Day by day the lesson of moral instruction is heard. Day by day the visitors from the city present themselves at his cell, and invite him to reformation; and at any stated period, or in case of special emergency, the inmate of the cell may have the attendance of a clergyman of his own choice, and the consolations of religious instruction such as he may have cherished in better times. His solitude is disturbed by the regular visitation of the officers of the prison, and the silence of his cell broken by the prayers and teaching of his visitors. Nor is it a violation of the plan, that he should repeat and amplify what he has heard, and loudly express what he has been brought to feel. This, with all the privations which imprisonment and conviction for extensive crime necessarily include, is not "solitary confinement." The justice which, for the sake of society, restrains the freedom of the offender, yields entirely to the mercy that turns to that offender's temporal and eternal good. This infliction, that separates him from his associates in felony, frees society from apprehension of his crimes.

We speak here of the infliction of the Penitentiary. The case of a convict in the County prison has in it much less of severity, and is proportionately therewith of less benefit to him and less advantageous to society.

We do not intend to argue upon the advantages of separate confinement and labor, over the associated condition of prisoners. That subject has been often presented in our annual reports, and in essays published by the Society, and ably and satisfactorily handled. We shall present some of what may be regarded as the minor objects and labors of the Society, from which, however, great good has already resulted, and to which we must look for many of the direct, personal, and permanent benefits which are to result from our efforts.

It will be seen, in the course of this report, that close observation warrants the conclusion that little hope of improving the moral condition of the prisoner can be indulged until he is placed within the reach of separate instruction, and beyond the evils of companionship with the vicious. This is the experience in this State; this is the growing opinion in Great Britain and Ireland.

COUNTY PRISON.

The County Prison presents a vast field for contemplation and labor. It is the receptacle of the vagrant, the drunkard, the disorderly, the suspected, and the convicted. All the elements of crime are found in its cells, and sometimes the unfortunate, the oppressed, and the innocent are made more miserable by a forced association with the vicious and the guilty. Sometimes an accidental association with the bad has procured for the careless, well-meaning innocent, a companion that has indoctrinated him with vice, and made him a proficient in crime. All degrees of servitude are experienced in this prison, from that which terminates with the twenty-four hours for intoxication, to that which is extended to years for some flagrant violation of the law. Nay, there are those who, in the midst of years, have no hope of escaping from the prison cells till they shall “be carried forth of men,” to be buried under the rules of the prison, or by the charity of those who knew them in better days. These last are men convicted of willful murder, by a jury, and sentenced to death, by the Court, but in whose behalf some circumstance suggests a withholding of the death-warrant, and their cases remain from one term of gubernatorial office to another, transmitted by the ruling chief magistrate to his successor, among the matters unfinished, but which seem not to impose upon the new governor the necessity of discharging the painful office which was avoided by his predecessor.

The occupants of the County Prison cells are of the following kind:—

The First Class.—Those committed for vagrancy, breach of the peace, drunkenness, and disorderly conduct.

Second Class.—Persons charged with violation of the laws, whose cases are to be decided by the Criminal Court.

Third Class.—Persons sentenced to short imprisonment, and the payment of fines and costs.

Fourth Class.—Those convicted of crimes of a high character, and sentenced to confinement and labor. And we may add a

Fifth Class.—Formed of those already mentioned, who, having been sentenced to death by the Court, are yet detained in prison by the withholding of the death-warrant for their Execution, or of the pardon which would ensure their release.

With all these the Society has relations by means of the Committee on the County Prison, and to prevent interference in labors, and to secure attendance at all the cells, the Committee is divided into classes, to each of which is assigned a particular division of the prison, though a member of the Committee is permitted to visit the inmates of any of the cells, in addition to those specially assigned him. But it can scarcely be doubted that where one visitor is punctual and faithful in his labors, the interference of others may rather tend to disturb the mind of prisoners than to aid them in the new path of duty upon which they have hesitatingly entered. Such matters are, of course, left to the judgment of visitors, who can easily discern when the ground is fully occupied by a successful laborer. Too much culture is said to be almost as fatal to vegetation as entire neglect. Frequency of interference by persons of varied habits and different modes of approaching the prisoner, can scarcely be productive of good, although each one separately operating, might, with God's blessing, work out an incalculable amount of improvement.

The laborers at the County Prison are not so numerous as at the Penitentiary, in proportion to the number and character of the inmates. The County Prison is a less desirable field of labor. At the Penitentiary the inmates have a fixed and protracted residence, and may be approached by the same teacher so long as hopes are entertained that "the continual dropping" of moral truths "will wear the stone" of his heart. And his separation from those whose language or presence might encourage his resoluteness in wrong intention, leaves him almost entirely within the influence of those whose duty and pleasure it is to make his banishment from bad society the means of his reformation.

At the County Prison, one large class of prisoners, by far the largest, is always changing. Day by day the *vans* arrive, crowded with wretches who have entered upon the path of vice, and are hastening down that terrible

declivity. Incarceration for all crimes, commences here, even though the criminal should be consigned to the Penitentiary when convicted. The vicious, the drunkard, the disorderly, the peace-breaker, and the vagrant, are committed to the prison, and must abide their monthly incarceration, unless “sooner released by course of law.”

We have already mentioned the various classes of offenders that occupy the cells of this prison. With one class, viz., convicts for various terms, the mode of dealing by the visitors from the city, is changed from that in the Penitentiary only so far as to suit the different character of the confinement, and the occupation of the inmates. The visitor is regular in his calls at the cell of the convict, and follows his own plan of moral and religious instruction, usually successful in proportion to the assiduity of the instructor, and the time in which he exercises his office of benevolence towards the inmates of the cell. Pamphlets, tracts, books of devotion, the Holy Scriptures, are supplied to the prisoner, and his attention to the prescribed lesson is urged by his teacher, and tested by his recitation and comment. And when the unhappy occupant of the cell is unable to read, additional attention is bestowed in imparting the instruction, so as to supply as far as possible the deficiency of primary education.

With the third class, viz., those sentenced to short terms, and the payment of a fine, it may be supposed not so much good can be expected. Yet there are not wanting instances of thorough reform consequent upon the gentle zealousness of the visitor, and the yet lingering sense of right in the mind of the prisoner. Indeed, as some of those suffering short sentences are obtaining the first fruits of wrong doing, it happens often that their consciences and their affections are more easily touched, and thus a hopeful reformation is more readily commenced. This occurs especially when the person arrested is admitted to bail, or, as can rarely happen, placed in a separate cell before conviction, so that a direct and necessary intercourse, by constant association with others in a similar situation may be avoided. The fact that many of these third class prisoners never return, may be regarded as evidence that the discipline of the prison, and the care of the visitors, have done the good work of reformation.

EVIL SOCIETIES.

The experience of visitors with some of this class is of a very interesting character. Occasionally are heard, in the out-break of passion, resolves of the avenging upon the world, the wrong inflicted by the first incarceration. It cannot be denied that these resolves are frequently carried out, and a life is consecrated to crime, in revenge for punishment—and the cell of the prisoner is the first degree in that education which terminates in a full graduation in the State Prison, or on the gallows. Of course, far back of this first imprisonment lies the evil; neglected education; want of parental direction, or the evil influence of pernicious parental example; evil associations at the corners of the street; and especially, and to be particularly noticed, COMPANIONSHIP IN SOCIETIES formed for mischief before the initiates understood the nature and tendencies of their confederacy. The prison and the penitentiary of our city have been made populous by members of these societies, whose object and origin are often emphatically set forth in their abhorrent names. Thousands of lads have thought they were honored in their position by being admitted to fellowship with those who had become a sort of terror in their neighborhood; and others have gratified a pugnacious inclination, by associating with vulgar heroes, who were bound to protect them from assault, and assist in gratifying their malevolence. It is no argument against the evils of these societies that there are in them very few persons of mature age. Alas! the ranks are crowded with those who have the vigor of nascent manhood, without the restraints of a sense of responsibility. Plans of evil, which if proposed to men, even young men, would have been voted down from the danger which the actors would incur, are adopted with acclamation by grown-up boys; and the quiet of neighborhoods is disturbed, property destroyed, personal safety jeopardized, personal injury inflicted, and sometimes human life wantonly taken.

In this class of prisoners, however, as we have already remarked, are often found the proper objects of the visitors' most hopeful attentions. The young man or young woman, who by the error, we will not say the accident, of bad associates, is arrested for an offence of which he or she is only partly

guilty of the act, and innocent of intention, after a few weeks' confinement begins to hear with interest the voice of friendship "breathed through the lattice," and though shocked at a new contact with the innocent, yields soon, not merely attention but confidence, opens up the heart to the friend at the cell door, receives the proffered book, accepts the offer of frequent visitations, and in time, not at once, shows that deep sense of degradation which is the beginning of true repentance. The visitor finds himself depended on, the confidence begets protection, and the punishment for the first offense or for the first detection becomes the means under Providence of permanent amendment.

In this department of the prison the separate system is practised as far as can be done consistent with the plans of employment, and, with regard to the effect of the system, even with the limited advantage which it has in this place, favorable reports are made. One instance is mentioned by a visitor, who is most faithful to the duties he assumes and whose regular labors are almost entirely limited to convicts, and to those of a particular gallery, so that he may not by diversity of labors, or a multitude of objects, lessen the good effects of his visits or diminish the means of a close intimacy with the minds of those whose good he seeks. He has within a short time received letters from two soldiers in the Army of the Potomac, both of whom had been under his moral dealings in the County Prison at one time, and both were members of the ——th regiment, both returned thanks for the valuable instructions and kindness of the visitor, both professed to have derived the most important benefits from his care, yet neither of them knew that they had occupied adjoining cells in the County Prison, and neither of them was acquainted with the fact that the other was addressing their common benefactor. Instances of this kind, if not frequent, do at least occur sufficiently often to strengthen the hopes of the Society that the labors which its visitors perform in the name of benevolence and under the direction of the Association, are fruitful, in individual and social benefit. Fruitful in that good which was contemplated in the formation of the Society.

One other instance of the effect of zealous, affectionate kindness and watchful care in this department may be mentioned. A visitor who has for twenty years been constant in the discharge of his voluntarily assumed duties, found in a cell a lad who had by bad association and repeated crimes

deserved and received a sentence for many years imprisonment. He was one of those impressible persons who yield to circumstances and follow out fully the course into which they may have been conducted. Notwithstanding the effect which several years' bad conduct had produced on the perceptions of the youth, separate confinement had afforded him a means of preparing himself for that species of mental hostility to the world which the young convict is likely to entertain, and when the visitor entered his cell and asked for a statement of the circumstances of his short but miserable career, the voice of affection and the tone of deep, almost of parental interest with which the prisoner was addressed, secured his confidence, and his tale of wrong doing was readily told. In time the unfailing attention of the visitor became almost necessary to the existence of the prisoner, and the prescribed devotion was performed. The Scripture lessons were well studied, and all that could be required of the inmate of the criminal cell seemed to be so well done that the "visitor" felt authorized to second the wishes of the prisoner for Executive clemency. A full pardon was obtained, and in a short time afterwards, the released convict was seen occupying a place of peculiar trust, where his own word was all that could be demanded as a statement of cash received. The many failures and disappointments which pain and mortify the visitors in their labor of love, are not recorded. But such an instance as we have noticed above, will serve as a reward for many years of toil, as compensation for many hundred disappointments, and as encouragement to future exertions, and especially to careful studies as to the best mode of improving the means of usefulness. We are not to forget that the labors of the visitors are low down. In other callings it is a comfort to know that the good have been made better by well sustained efforts. The mission of the Society's Visitors is to those whom the world deems already lost. To snatch even a few from the many, very many, of those who constitute the class of depraved and criminal, publicly exposed, is a work in which the laborers must find much of their reward in the sense of suffering mitigated, and the feeling of kindness gratified. Their highest boast must be that God has accepted the services for the permanent benefit of even a few.

In making an annual report of the doings of the Society for the Alleviation of the Miseries of Public Prisons, we might be justified in multiplying our statements of favorable results of the labors of the members of the two great Committees. For these are the fruits of all our plans, the result of all our labors. If the great object to many is to secure the adoption

of the separate confinement of prisoners, this separate confinement is only to ensure the moral improvement of the individual prisoner. If the Society puts forth its efforts to create and multiply auxiliary institutions, it is only that there may be a greater concurrence of zeal and talents to make our State Penitentiaries and our County Prisons the schools of reform of individual prisoners; and the Society for Ameliorating the condition of Prisons, while it rejoices in the adoption of its views by institutions in other States of the nation, and by governments abroad, rejoices not as having triumphed merely in extending a knowledge of itself, and as having secured an adoption by others of what it deems its peculiar plans, but as having conciliated the prejudice of other benevolent associations, and secured their co-operation in the work of promoting the good of society, by multiplying the means of improvement of individuals.

We shall have occasion to speak more extensively of the nature of the labors of the Prison Committee, each one of whom is a "Visitor," when we come to consider the labor in the female department of the County Prison. And that, too, will afford opportunity to notice the operation of the primary judiciary system of the city, and its effects on prisoners and on society.

PARENTAL RESPONSIBILITY.

Before closing this part of the Report, it is deemed proper, if not indeed a duty, to refer again, and with stronger emphasis, to the evil “associations” of young persons of our city, their immoral combinations, and the evils to which these societies give rise. Lads whose parents are laboring hard all day to procure a scanty support, find themselves without the restraint of domestic authority, and they use their freedom to procure the gratification of wishes which have been formed without domestic discipline or moral restraints. In many of these cases the parents are little better than the children, and the example of intemperance and ill temper at home is easily followed abroad. In some cases the parents, though virtuous, lack the mental ability to correct the evils of bad association in their children, and the foolish son, without any criminal intent or neglect on the part of the parents, becomes a grief to his father and bitterness to her that bore him. There is scarcely to be found a more effective school for vice at first and crime in succession, than is furnished by one of the clubs of lads with which parts of our city are infested,—infested as much now, though not as obtrusively, as when “nights were made hideous” by the uproar of their juvenile members, and the “day deformed” by the inscription of their titles and deeds upon the fences and house-fronts in the vicinity of their operations. He who would alleviate the miseries of prisons by lessening the number of prisoners, may find object of labor among these most injurious societies.

He who would stay the progress of vice and crime in that direction, must deal first with those parents whose vices or whose negligence of parental duties supply members for the clubs, and candidates for the penitentiary. Parental indifference, total disregard to all the obligations of domestic life, is the cause of such a deterioration in the young of the city,—the young we mean of both sexes; for neglect at home operates as injuriously upon girls as upon boys; and the evidence of the equality of the evil is as conspicuous in the bad associations of the young female as in her miserable brother, and the result may perhaps be far more lamentable to the former, because of the almost impossibility of reclaiming her. If the clubs and associations absorb

the boys and prepare them for a guilty manhood, public “parties,” coarse exhibitions, and service at the drinking saloon, at dancing halls and casinos, qualify the girl for the lowest grade of vice. The two sexes have different paths downward to destruction, but in this world those pathways usually terminate in the prison; and the cells at Moyamensing have more than once, and at one time, contained father, and mother, with their sons and daughters, —terrible illustration of the evils of home vices, and the neglect of parental duties, the forbearance of domestic restraints.

It is not intended to assert that all the vice and errors of children are referable to parental example: that would be a gross injustice to those sorrowing ones who see the stray one from their domestic circle, disgracing in his vicious career the lessons and examples of piety in which he was reared, and forming a marked exception to the character and condition of his relatives. But we have a right to speak plainly where the evidences of neglect and even of bad example in the parents are manifest in the error of the child. We have a right; nay, in the position which this association is now occupying, we have a duty to society, to urge attention to the evils which our community is made to suffer from a neglect of domestic discipline, which crowds the cells of our prison with guilty parents, and fills the House of Refuge with their erring children.

We repeat it, that we distinguish between those cases of parental sorrow which flow from some exceptional cause, and those domestic miseries which are consequent upon vice or criminal neglect; but care must be taken not to weaken a sense of parental responsibility by referring to misfortune, too much that may be referable to vicious error. In this matter, as in others of a different character, perhaps the language of the poet may be painfully applicable:

“Look into those you call unfortunate,
And, closer viewed, you’ll find they are unwise.”

STATISTIC.

While on the subject of the County Prison, it may not be amiss to present a few statistics regarding the number of those who have been its inmates during the year 1863. The whole number of commitments was 17,219. The philanthropist who looks at the effect of vice or misfortune on individuals, will be startled at such a statement, when he considers how much private misery and domestic grief there were involved in all these incarcerations; not only in the separation of so many persons from their social and domestic associations, but more than that, often the long career of annoyance to family and friend, from the regular advance in crime and vice which led to the incarceration. One other fact is noticeable, the increase in imprisonment in 1863 over those in 1862 was 2,573. That, it is evident to those who visit the prison and examine into the cause of such painful effects, is, in part, one of the bitter fruits of the present war. And the mortifying fact, that 794 of the increase of committed were females, is evidently referable to the same cause. In 1861 and a part of 1862, the number of commitments of males was greatly decreased, as the army was absorbing with better elements, many of those who were almost monthly successful candidates for the prison, while at the same time, the number of females increased, owing to the absence of those to whom they were responsible, and to the periodical reception of money in larger amounts than they had been accustomed to receive. The return of whole regiments to our city, serves, by supplying only a few vicious from each, to bring up the number of males without diminishing those of females committed. Yet we must not overlook the fact, that a large portion of those extra commitments are of persons who contrive to make their appearance at the prison in about ten days after having served thirty days in the cells. They are new commitments, but they are old offenders; and they furnish one strong argument, or rather, perhaps, show the necessity for a House of Correction.

FEMALE DEPARTMENT.

The Philadelphia County Prison is composed of four different departments, one of which is called the “Debtor’s Department,” so denominated because it was destined to receive and retain those who were to be incarcerated for not paying their debts. The merciful laws of Pennsylvania have abolished imprisonment for debts by contract, and now the building is used for the detention of some United States prisoners, for some who are adjudged to be in contempt of court, some who are detained on mesne process, &c., or who are sentenced to pay fines or costs. With these and others under the charge of the sheriff, the committee have had little intercourse; their circumstances, or the temporary character of their almost nominal confinement, not rendering it probable that visits would be acceptable or profitable.

The south wing of the prison is devoted entirely to male vagrants, drunkards, breakers of the peace, those who await a trial, and some who are sentenced to short imprisonment and fines. The middle building contains male convicts, sentenced to separate confinement and labor, and also those who have been sentenced to capital punishment. Among the inmates of these two buildings the visitors of the Society are constant and assiduous in their labors, and we have already referred to some of the results of their visitations.

The north building is entirely separate from the other, having two lots of ground and a high wall between that and the male convict department. The northern building is exclusively devoted to females. The vagrant, the drunkard, the accused, and the female criminal of every class, are here kept, under the care of a male keeper, and a matron and assistant matron. And as this department presents a peculiar field for the action of our Society, we shall make special reference to the character of the inmates, the nature of their offences, the circumstances of their committal, and the character and

results of labors for their moral and physical improvement; not because these labors are greater or more effective, but because the pursuits, the misfortunes, the errors, and the crimes of the prisoners differ from those of the males, according to the circumstances of their condition and sex, and require some additional means to secure an amelioration of the state of their lives.

In dealing with female offenders, we have to encounter the same incentives, the same passions that influence the males; and most of the same crimes that are punished in the male convict department are here expiated by the females. But the mode of dealing must vary with the varying circumstances of the prisoner; and those circumstances must greatly depend upon the character of the individual, resulting from her sex and the condition of her earlier life.

It is calculated that more than one thousand females divide their time between the cells of the county prison and the practice of those vices or the committal of those crimes which send them there. For a large number of these, no more than thirty days imprisonment can be given at one time; and many of those thus committed are discharged much sooner: so that there is little time for any moral dealings with them, and even were it practicable to deal with them in exhortation and advice,—were the time of their imprisonment sufficiently long to warrant a hope that they could be persuaded to form good resolves, still the fact that more than one, and often four or five, are found in the same cell, renders almost hopeless any attempt to induce the drunkard to forsake her resort to the bottle, or the impure to avoid the haunts of vice which she has frequented. The evidence of contrition which kindness and faithful dealing on the part of the visitor may call forth from the prisoner, are inducements to her companions in the cell to ridicule the moral teacher, and to laugh the repenting one out of her half-formed resolves. The experienced visitor learns to fix a just estimate upon the tears and promises of those expectants of favors; but the good female visitors who occasionally seek to bring “glad tidings” to the miserable offenders of their own sex, usually suffer deep mortification at the disappointment of pleasant hopes, and are compelled to seek their consolation in the consciousness of good intention and perfect fidelity to the object which they profess to serve. The great, almost the only mode of serving the inmates of this part of the prison, is to induce them to enter

some of the asylums in the city, and yield themselves to the gentle discipline of institutions founded for the good of those who have lost their self-respect and forfeited the good will of society. And the records of the “House of the Good Shepherd,” of “The Magdalen Asylum,” “The Rosine” institution, and some other associations for the meliorating the condition of the frail, the vicious, and the guilty, will show what valuable auxiliaries these institutions have been to the Society for Meliorating the Condition of Prisons.

While on this branch, we may as well say that, by an Act of Assembly, the Inspectors of the County Prison may, at their discretion, discharge at once any person committed for vagrancy, drunkenness, and disorderly conduct, or a breach of the peace. Of course, a sound discretion is to be used; and it is within the knowledge of all who are conversant with the administration of the County Prison, that great good has resulted from the exercise of this power by the Inspectors, and incalculable evils have been prevented. Without any effort on the part of this Society, it has happened that more than one of its appointed visitors to the County Prison have been Inspectors; and in the exercise of the power conferred on the latter, the duties of the former have been most valuably discharged. The condition of many prisoners has been meliorated by a timely inquiry into the cause of their incarceration and the duties that awaited them at home. If it should appear that accidental association had brought a poor innocent girl to the cells, it is a beautiful and profitable exercise of power to send her home before she should make acquaintance with the habituées of the prison, or before a knowledge of her misfortune should become general among her acquaintances, by a notice of her absence from the scene of her ordinary duties. Take one example as illustration of the idea.

A girl about seventeen years of age, well dressed, was seen emerging from the van, that at the prison

“Each morning vomits forth its sneaking crowd”

of police committals. Her neat appearance and unusual sadness arrested the attention of one of the visitors of this Society, who was there on duty as an Inspector. He learned that the girl, going home on a summer evening from work, by which she maintained herself and mother, was annoyed by the

appearance and bad language of a drunken woman. The disturbance drew to the place a police officer, who did not see the real offender escape, and finding only the poor girl there, he arrested her, and she was sent down for “disorderly conduct.” Close examination into the case might have shown the mistake, but there were many more cases, and so the poor girl took her place among a crowd of miserable wretches of her own sex. Her story was found to be true, and she was at once dismissed.

It is not worth while to dwell on the importance to that girl, and her mother dependent upon her labor, of the prompt release. Since that time, the arrival of the van has been watched, and the appearance of its inmates carefully noticed, and other cases have presented themselves for the prompt and valuable exercise of the power entrusted to the Inspectors.

But it is not alone the entirely innocent that receive the attention of the Inspectors. Inquiries are made into the circumstances of the poor inebriate, of the temptations that beset her, of the chance of finding some employment abroad; and the promise of amendment is rather taken than depended on, and a discharge is granted. It often happens that the promise is kept much longer than was supposed probable, and thus so much time is redeemed from the waste of vice and crime. The repetition made the actor, at least, no worse than a continuance in idleness would have made her. If she had been detained for thirty days, she would probably have found no employment, and a return to vice would have been almost the certain result.

And on that point it may not be improper to make a remark. A large part of the poor females who are habituées of the prison, depend less on regular engagements in the houses of their employers, than on demands upon their time and labor in seasons of emergency,—such as house cleaning in the city, or garden work in the country. It often happens that in the midst of the demand for these women, they are in the cells of the prison for “vagrancy,” “disorderly conduct,” or “breach of the peace.” If they can be released, they may earn something, in the spring, summer and autumn, to support them in the winter; or at worst, they are supported while they are at work. If they are detained during the demand, they lose the present and the future employment and its remuneration, and leave the prison, when their thirty days shall have expired, with no expectation of immediate engagement; and they return to the prison by the way of the haunts of vice, from which labor would have saved them, temporarily at least.

It is in such cases that the exercise of the power to release on the part of the Inspector becomes greatly useful to the community and to the prisoner; and certainly it is eminently in furtherance of the plans and wishes of this Society. It may be added, that numerous instances might be cited of the entire reformation of females by their timely discharge from prison when there existed a demand for their labor.

In this department of the prison is found the best illustration of the vast difference of the influences upon the minds and character of the prisoners wrought by the separate and the social system of incarceration. It is true that all convicts are or ought to be separately confined; but a very large proportion of the female prisoners here are awaiting trial, or held for some offence below felony, in such numbers as to render it quite impossible, even with all the discharges granted by the Inspectors and procured by the Agent, to limit the number of that class of prisoners to less than from two to four in many of the cells. Here, then, side by side, or in close vicinity, is found an example of the social and the separate systems, and to some extent a judgment is easily formed of the effect of the two modes. In the cell where are more than one female, (we speak of females, because, accidentally, our means of information, as it regards the condition of that sex, in prison, are more ample than they are concerning the males, though the circumstances being the same, the effect of similar treatment would be different only in proportion to the constitutional difference of the sexes—the female being much more social, and much more ductile and impressible, and thus more easily influenced by her associates,)—in these cells monitions and advice are offered by the visitors, and for a moment there seems, beneath the respectful attention of one or two, a kind of resolve to try to do better,—books and tracts are accepted, and perhaps read, and there is a promise, which to the unexperienced visitor seems well founded, that the miserable object of his or her care will seek to amend a course that leads so directly to disgrace and misery. But scarcely does the visitor leave the door of the cell, when the deluge of ridicule poured out by the companions of the “promising” offender, obliterates all sense of compunction, and all resolve of amendment, if any were formed, and virtue and decency are coarsely ridiculed, and their humble advocate laughed at as an easy dupe. But the visitor to the cell of the convict, or the prisoner separately confined, has easy access to the feelings of the inmate, and the lesson given is allowed time to have some favorable effect. The resolution for good which the

unhappy woman forms upon the evidence of unwonted interest in her fate, may not be permanent,—the feelings may have acted rather than the judgment,—but the repetition of the visit and of the lesson scarcely fail to beget that sense of wrong doing which is the parent of repentance; and especially, if the visitor makes evident a deep feeling of affection, and gentle sympathy in the character and condition of the prisoner as a human being, may there be hope that good will follow. There must be heat applied, before the iron can be wrought into useful shape.

It is not to be supposed that all who seem to maintain to the last day of their imprisonment their resolve to amend their lives, do indeed carry into effect that resolve beyond the prison wall. That would be too great a harvest to hope for. When the resolution is taken, the pain of punishment is felt, the sense of confinement is keen, and the view of personal degradation in presence of a virtuous teacher is mortifying; and the force of former habits forgotten, and the attractions of vice underrated, and especially the sense of shame among those who knew them, not calculated on, they go forth in the resolution of amendment—they meet the suspicions of the good and the imitation of the bad—and they allow passion to triumph over virtue.

“The bow well bent and sharp the spring,
Vice seems already slain;
When passion rudely snaps the string,
And it revives again.”

But discouraging as such cases are, and especially in their frequency, there are many cases where the convict, after having promised, in the crowded cells of the vicious and accused, to mend her life, and then returned to vice and crime at the suggestions of her vicious companions, has been led by the gentle invitation of the faithful visitor to resolve on good, and where the solitude of her confinement has led to that reflection which gives permanency to her resolution. And, it may be added, that it is probable that of the many failures of success which are to be deplored, some are due to the want of entire separation of the convict, consequent upon the form and location of the cells, that forbid entire seclusion, at least render unfruitful all attempts to prevent the occupants of neighboring cells from holding conversation with each other by message, viva voce, or some conventional signal or sounds. Marvelously ingenious are the contrivances and the resorts of the human mind when an exclusion from outward objects

assists in the concentration of faculties upon some desired end. It may be added here, that almost all the success that attends the efforts of the philanthropist to reform females in the County Prison, is due to separate confinement; and even when the inmate is "sent down" only for drunkenness and disorderly conduct, judgment, founded on her appearance and manner, has been well exercised in placing her either in a separate cell, or if that be not possible, then in selecting her a companion, and thus bringing her within the genial action of visitors of her own sex, without the danger from subsequent ridicule of her cell-mates. In this relation, too, has proved highly beneficial, the habit noted elsewhere, of meeting the van as it reached the prison, and selecting at once those who are new to the place, and, after inquiry, if not dismissing them to their family, at least placing them apart from the more abandoned of their sex.

Before closing this division of the Report, it may not be amiss, even though it be a partial repetition, to notice that the visitors to the two prisons in this city agree, as it is elsewhere stated in this Report, that all other things being equal, the hopes of successful dealing with a prisoner rest much upon the length of his sentence, and the completeness of his separation from all intercourse with other prisoners. Hence the little hopes expressed of favorable results from advice and persuasive dealing with the inmates of the vagrant and drunkard's cell, whose imprisonment does not extend beyond thirty-one days. We may remark that usually the convict is less a victim of vice than of crime; and he generally has more mind upon which to operate by argument, though, perhaps, he may have less conscience to be affected; and this applies especially to men, who, as convicts, seem by a strange law of society, to be exempted from censure for their vices, while the female convict is made responsible, not only for the crime for which she suffers, but for all the vices that are incident to an erring female. But it seems almost certain that if the vicious female should be made the inmate of a separate cell, and be the object of the gentle attention, and persuasive argument of moral visitors for as long a time as is the criminal female, she would be as likely to yield to those moral allurements as is the convict. To produce the means of alleviating misery, we must have a change in prison economy; we can, perhaps, scarcely hope for success till the House of Correction supplies the means.

MORAL INSTRUCTION.

Every effort made by the Society, in its attempt to alleviate the miseries of public prisons, is intended to be in a moral direction; and whether the person in whose behalf the agent or representative of the Society labors, is to be the tenant of a cell for years, or to be immediately released, it is to the moral perceptions that addresses are made, and it is the moral condition that is the object of public and private labor; it is for the moral improvement that the physical condition is regarded, and what may appear to the careless or indifferent observer as merely an exercise of philanthropic feeling, or of a humane sentiment, has for its great end such a disposition of the offender, or the accused, as will secure to him the means and condition of moral improvement, making the cell endurable to the felon by a growing appreciation of the justice that placed him there, and a sense of the benefit of reflection upon the past, and the comprehension of the advantage of resolves for good, which, by kind monition and gentle persuasion he is induced to adopt. The moral image defaced by vice, or buried beneath the accumulation of crime, begins to assume its earlier charms, begins to move under its superincumbent mass, and, with a recognition of its proprieties and value, vice and crime not only lose attraction, but become hideous and repulsive; the spirit of hostility to the world is gradually weakened, and a lively sensibility to all the duties of social life takes the place of that wretched resolve to misapply power by felonious appropriation, and indulge passion in the violation of the laws of decency and morals.

Or, if the prisoner is to leave his cell, the efforts are to fix in his heart the great principle of moral excellence, and to strengthen the resolutions which he formed while in prison. To follow, indeed, the liberated man to his home, if he have any, or failing that, to provide him with temporary shelter and employment, and to watch over his conduct, and guide and guard him amid the temptations upon which he has entered with delicate susceptibilities and wounded self-respect. Resolves formed in the solitude of cells, are like

roots that vegetate in darkness, they are certain not to be very fruitful in their secluded condition, and are exceedingly liable to perish unproductive when exposed to the light.

Care, watchfulness, kindness, and condescension on the part of those who would perfect their work of good, are absolutely necessary to that reformation in the prisoner, which is to make him a useful citizen, and restore him to the confidence and respect of associates. It is not permitted here to give instances of the beneficial exercise of this species of practical, long-enduring kindness, lest the sensibilities of the benefactor should be wounded, and the beneficiary find his condition and circumstances injured by unnecessary publicity. But instances are not wanting of the recent criminal occupant of a felon's cell, returning to his moral teacher to give thanks, to present the fruits of his amendment, and, while asking additional advice, to solicit continued interest in the future.

The cheerful, kind reception of the young penitent by his friend and guide, seemed to seal the work of reformation; and if he who had been justly charged with, and severely punished for, repeated felonies, felt the healing influence of Christian forbearance, and the long exercise of reforming efforts on the part of the moral instructor, who shall tell the effect upon the repentant's future interests, upon his associates, and upon the business men of the world, with whom he must mingle, of the freedom of his access to the house of his benefactor, the cordiality of his reception and entertainment, and kindness and good wishes with which he publicly takes leave of him at the open door.

This kind of conduct is that "*coup d'épaule*" which denotes true dignity and greatness in the bestower, and which confers upon the recipient the freedom of virtuous society, and the power to become a useful member in a good community.

Though the publication of many striking instances of reformation that illustrate the effect of direct personal dealing with the prisoner has been forborne, lest the peculiarity of the cases should too directly point to the individual, and injure his prospects of success, yet one or two are given, that all, and especially prisoners, may comprehend the "possibility of reform," even to the very vicious and guilty. It is believed that the offender, much more frequently than is supposed, contemplates in his cell the duties

and work of reformation, while the discharge of that duty, and the commencement of that work are postponed, from the inability to see how the censure or suspicions of society are to be surmounted, or how, amid those censures and suspicions, so repulsive in their operation, he is to avoid the snares of former associates, and the temptations of former pursuits. The possibility of amendment, the practicability of virtuous resolves must be made apparent by judicious counsel and imitable example.

The effect of the moral improvement on the repentant prisoner, is soon manifested in the improvement of his physical, social, and fiscal condition. The confidence and favor of those who have promoted the change is communicated to others, and amendment of life is productive at once of an amendment of the means of living. The man of business pursuits is as anxious to procure the service of the honest and the able, as the honest and able are to obtain the patronage of active men.

With these great means of moral improvement, and, doubtless, with an eye to the temporal as well as the eternal consequences, the Society has always had in view the means of making prisoners better as well as more comfortable, of ameliorating the miseries of prisoners as well as prisons; and hence it has required action on the part of its visitors, and a regular report of what they have done, and generally how they have labored.

In dealing with the question of reformation among those who occupy the cells of the County Prison, it will be readily conceived that there are not only a variety of minds to deal with, but a great difference in the elements of character. Something must be attempted for those whose degradation is so great, that they hardly discover in their condition more cause for shame than does the unfortunate speculator who has failed in his plan of wealth. These miserable wretches seem to have no taste beyond the lowest dens of infamy, and no ambition but to gratify that taste in its utmost depravity. And there is a demand, too, for services among a few who seem to have few tastes for what are called low vices, and to have based their calculations of success on efforts that involve the higher degree of felony. The higher offences are in many instances rather the result of vicious habits than the resort of those who aim at the property of the industrious and the wealthy. Every one of these offenders against the law is within the scope of this Society, and his moral condition is in some degree provided for.

It has already been mentioned that the Society sends to both the Penitentiary and the County Prison, a Committee, whose business it is not only to note whatever in the administration of the institutions may have a bearing on the moral and physical condition of the prisoner, but also to be themselves missionaries to the inmates of the cell, moral and religious teachers of those who have failed in both. In addition to the labor of these committeemen, there is at the Penitentiary a regular moral teacher, (occupying what in some other institutions is called the chaplaincy,) but fulfilling other requirements, and making acceptable his more formal and general teaching by his frequent special and personal communication with individuals.

At the County Prison, the Agent of the Society, who is also the Agent of the Board of Inspectors, procures the services of a clergyman for religious general instruction, by preaching and prayer on the first day of the week. It may be added, also, that not unfrequently ladies and gentlemen, who belong to the choirs of some of the city churches, lend their musical aid, and give additional attraction to the religious services.

But it will be readily comprehended that as the prisoners remain in their cells during the whole of the religious exercises, they are not so likely to be influenced by the teaching and exhortation, as if they were assembled in chapel for social worship, and sat within sight, as well as within sound, of the preacher. The difficulty in this matter with a large portion of the occupants of the cells, especially when low vices rather than considerable crime have placed them there, is to get them to give attention to the speaker, whom they cannot see.

They, too generally, use the occasion of religious exercise for sleep or conversation; and the administering of discipline is, perhaps, more frequently called for, in consequence of mal-conduct during "Divine service," than at any other time. As bringing the preachers face to face with his audience is impossible under the arrangement of the prison, and would be a departure from the plan of separate confinement, it follows, of course, that it cannot be resorted to as a remedy for the indifference to, and neglect of, the public teachings of the officiating clergyman.

In the Parliamentary Reports, partial abstracts of which are given under the head of "Correspondence," in this report it is mentioned that the

prisoners are brought into chapel without being able to recognize each other in their ingress or egress, and placed in separate stalls, so arranged, that while they can see and be seen by the clergymen, they cannot see each other. The prisoners while conducted to and from their respective cells, have their faces covered with a species of mask, which, being perforated, enables each to see and breathe, but not to recognize any other masked person. Whether this is a better system than is practised in our County Prison and Penitentiary, we are unable to say, but it supposes a chapel or chapels for several denominations, with a large number of stalls. The plan could be practised only with much inconvenience to the officers of the prison, and the object of the non-recognition among the prisoners must at least be endangered. Separate confinement and separate instruction, seem the safest.

The Society has received the aid of members of a female association, whose wish to be useful have taken them to the cells of prisons, and whose devotion have placed them in immediate conference with the erring and miserable of their own sex; and great good has resulted from their labors. It is a beautiful testimony to the devotion of these females, that while generally connected with some religious denomination, and, of course, attached to their own creed and practices, they have limited their labors to the inculcation of great moral precepts that rest on revelation, and secured much success from a gentle and affectionate enforcement of their teaching, leaving the object of their efforts more in love with the theory of virtue, if not fully resolved to enter upon its practice.

This is undoubtedly the true course for those who resolve to be useful to all who will listen to them. But those who know the well-springs of affection in the human heart, know how often they are called into exercise by some incident that seems aside from the general or the ordinary mode of procedure; nor should those who look for improvement in the prison cells, overlook a great element of success found in the early attachment to the creed in which the prisoner was reared, and for which he possesses that kind of affection which is offended by the least impeachment of its efficacy, though his own life and present condition show how utterly inoperative for good it has been on him. Those persons are not Atheists or Deists in theory, only in practice. They recognize their obligation to their creed and their

early instruction, and they mean at some future time to do better; but now they sin against their own knowledge.

They know the right, and they approve it, too;
They know the wrong, and yet the wrong pursue.

As to these persons, and especially in the female department, nothing could startle them more than an imputation upon their *belief*, nothing offend them more than an attack upon their creed; and suspecting that their delinquencies in practice will be imputed to the deficiency of the doctrine in which they have been reared, they stand often on the defensive; occasionally, indeed, they seem ready to take the offensive against those whom they believe to be of another form of worship. This all may be wrong; it may be ridiculous, but nevertheless it *is*; and with those who seek to do them a good, and reclaim them from vice to virtue, it must be respected, so far as not to offend it by any evidence of hostility to aught but sin and vice. The confidence of the prisoner must first be secured, and this not always by the same means, that his improvement is to be effected; and few circumstances so soon open up the heart as a similarity of creed, and an evidence of belief that that creed is not answerable for the vices or crimes of those who rather hold it in abeyance than in practice. And in that view of the case, and of the wants of the prisoner, some of the Committee having been specially assigned to the female department of the County Prison, have solicited or accepted the offered services of educated and pious females of diverse religious denominations, and opened to them, by authority from the proper officers, the doors of all the cells, so that each may have access to every inmate, and deal with her mind and conscience in the way which shall seem best adapted to the peculiar case.

It is not expected, as certainly it is not desired, that these devoted women should attempt to proselyte the prisoners, looking rather to a change of creed than a change of conduct; or rather, to speak more charitably, seeking a reformation of conduct only through a change of creed; but it is, of course, supposed, that each will deal with the object of her care in the way in which her conscience shall sanction, and that advantage will be taken of a similarity of creed to enforce a renewed recognition of doctrine in which the offender was reared, and a resort to the means which, having been enforced and adopted in childhood, are easily comprehended and readily

practised, and bring with them the reminiscence of the better days of home and early piety, while they give a stronger hope of future prosperity and happiness.

The stranger visiting the County Prison, has been gratified with the free ingress of these female missionaries, and has been forcibly struck with the harmonious, though not associated, action of women whose peculiarity of dress shows them to be of religious connection variant in creed and ceremony, but whose concurrent *general* instruction shows them to be trying to serve one Master in the way which their consciences suggested and approved, and which is warranted by the example of that Master, who “went about doing good,” and who showed the duty of that conduct when he said, “I was in prison and ye came unto me.”

However beneficial may be the regular service of the clergy on the Sabbath, it will, it is believed, be admitted by all, that those who have the ear of the separated prisoner, who know the peculiarities of his case, and the proclivity of his inclinations, have a great opportunity of touching his affections, of making an impression on his mind, and rousing him to good resolves, when the dealing is separate and special, and the poor wanderer feels that every word that is uttered is directed to his own conscience, and every hope that is offered is founded on amendments that are peculiar to his own condition. This separate dealing is, in almost all cases of sin, of vice and crime, that which a friend would desire to exercise; it is that which the sinner, the vicious, or the criminal, would acknowledge the most efficacious, because less offensive to his self-love, and because it can be so specially adapted, as to meet every point of his own case, so as to leave no avenue for mental escape, and satisfy him that nothing less than entire reformation of resolves and conduct will save him from the augmentation of that punishment which he is now suffering, and which will cut him off from the sympathies as well as the intercourse of his fellow-beings.

It is scarcely possible to say too much of this mode of separate instruction and exhortation,—this mode of softening the heart and moulding it to good,—the simple means of acquiring the confidence of the prisoner, and then leading him out of his miserable condition, to the commencement of that course which in a long run is to lead to the establishment of virtuous principles; but it is desirable that more could be justly said of the number of those who give themselves to this holy service. The number is small,—quite

too small for the number of those who need those aids to virtue of which we have spoken; and especially is there a deficiency in the variety of religious views of the visitors. Not that it is desirable that distinctive doctrines should be enforced; but it is desirable, as has been stated above, that the attachment to creed,—almost as strong in the vicious as in the good,—should be respected as a means of confidence at least. Few virtuous, few pious persons of enlarged christian philanthropy consider the attachment or hostility of certain persons to certain creeds in which they have been reared, or which they have been taught to hold. Zealous attachment to creed survives all practices of virtue, all ground of self-respect, and is apparently, and perhaps naturally, more rampant in those who have no sense of the virtue which the creed enforces, than in those who understand the character of the creed, and the rights of others who do not profess it. And it is worthy of remark, that some of the most violent personal contests of which the Vagrant cells of the County Prison have been the arena, have been caused by the opposite *religious* creeds in which the miserable occupants had been born, and in which they had been reared; and thus the broken forms of christian doctrine would be avenged in the receptacle of vice, and by the vicious, with all kinds of blasphemy and personal violence, and the religion of peace and purity be enforced with broken heads and broken commandments.

This strong case (entirely real) is presented to illustrate the idea that almost all hope of doing good to the class of persons to whom reference is made, must rest upon efforts that are put forth in some regard to the prejudices which are manifested by those whose benefit is sought.

To produce the ends proposed by the means which we recommend,—namely, an arousing of the conscience by gentle appeals to the hidden affections, by those whose circumstances qualify them to gain access to the confidence of the moral patients,—we must have many devoted visitors, willing to labor beyond the sight and without the applause of the world; and they, when properly vouched for in all requisite qualifications, must have free access to those whom they would aid. It is known that this Society has, by the laws of the Commonwealth, a sort of special privilege to visit in prison, by its members, the miserable, the wretched, the vicious and the criminal, to breathe through the gratings of the cell words of admonition, comfort and hope, or to open the door and participate in the confinement of

the prisoner, and address him in accents that may, in the silence of all around him, awaken him to holy resolves. But even this privilege, greatly used, and, as we believe, never abused, is imperfect without a concurrent action on the part of those who directly administer the affairs of the prison. If they oppose obstacles to free access to the incarcerated, no assertion or proof of right will make the path easy, or often trod by those who represent us, especially the females; it will be found to add the disgust of contention with keepers, to the inconvenience of visits to the guarded. And still less effective will be any efforts by christian philanthropists to alleviate the misery of the cells, and improve the minds of the occupants, if their visits of mercy are followed by the coarse jeers of the unrefined and unsympathizing, ridiculing the efforts of the self-sacrificing visitor, and shaming the half-resolved prisoner; nor would it be better, if the regular official should, from bigotry or bad design, denounce the teaching of the voluntary visitor, because it might tend to other creeds than his own, or because it proceeded from other sources and in other channels than that by which his creed was formed, or those in which his conscience directed. It will be readily understood how potent such disturbing causes would be in producing injurious effects,—in marring, indeed, the good work of the moral teachers in our prisons. It seems therefore meet to say here, that while it is supposed that those who are entrusted with the care of the prisoner, in both Penitentiary and County Prison, have some well-established views of doctrine, and are connected with some religious denomination, it is not known that any of them have attempted to interrupt the work of the committee and agents of the Society, by hindering the access to prisoners, or by disturbing with contrary teaching the effect produced. On the contrary, it seems a duty at this time and in this place to bear testimony to the unfailing urbanity with which our visitors are received and treated at the prisons, and the aid always rendered to give them ready access to the cells and to the minds of the incarcerated. In the County Prison, where such a variety is presented, and so much care is required, and so much time demanded by the frequent changes, no occupation of the employees, male or female, ever poses an obstacle to the visit of those who come to help the helpless and improve the bad. No variety of creed induces a diminution of that courtesy which is the true exponent of benevolence; and in this respect the superintendent, keeper, clerk and matrons may be regarded as official

assistants in the work of alleviating the miseries of the prisons which they are bound to regulate.

AGENT.

The Society continues to have the benefit of the labors of WILLIAM J. MULLIN, who for so many years has filled the place of “Agent” at the County Prison. His services are important to the Society, in the amelioration of the condition of a vast number of men, women, and even children, whom he finds in the cells of the prison, victims of the errors of public officers, of their own follies, of the vindictive feelings of unkind neighbors, of their own inordinate love of litigation, or their own or their parents’ crimes. He is not called to look to the cases of those who may be released by the Inspectors. His labors are with the prosecutors, the aldermen, the district attorney, and the court; and those labors resulted in the release of one thousand four hundred and ninety-one persons during the year 1863. These releases, of course, were all effected with the consent of some established authority. And it may be added, that of the whole number released, *forty-three* were children.

The amount of domestic misery consequent upon the arrest and incarceration of the 1491 persons is almost inappreciable. The injustice corrected by the successful interference must have been immense, and the pleasure brought to a suffering family by the restoration of parent or child to approved innocence, and the duties and comforts of home, must have been truly great.

But we are not to consider all these 1491 persons entirely innocent of the charges brought against them. The magistrate had the commitment supported by the oath of some complainant, and the complainant himself was undoubtedly often justified by the conduct of the prisoner. The blow for which assault and battery was charged, was probably given, and the fruit or toy whose loss led to the imprisonment for larceny, was taken by the accused. The pane of glass in the tavern window was probably broken by the intoxicated creature who was charged with “malicious mischief.” Nor,

under these and similar circumstances, are we always to censure the magistrate for taking the oath of a citizen. He commits to prison, or holds to bail for trial, those who stand accused of the violation of private rights. The offender knew, before he entered upon his offensive conduct, that he was about to do wrong. But probably he did not understand the extent of that wrong, and especially was he ignorant of the extent of the penalty which he was about to incur.

We all know the axiom of criminal law, that “ignorance of the law excuseth no man;” but we all know, also, that the axiom is not of equal force in moral law; and the administration of criminal law itself has practical exceptions to the rule. We have already said that a large number of cases sent to court might easily be settled by the parties, but especially by the interference of the magistrate; and we may add, that more than two-thirds of the cases in which the magistrate holds, or commits the prisoners for trial, could, before reaching the prosecuting attorney, be settled, with benefit to the community and the offender. The requirements of the law are seen and felt by the accused before he finds himself committed. The vengeance of the law would do little towards reforming one who already sees his fault, and is ready, as far as possible, to make reparation. In such cases the interference of the Agent has been found most beneficial, not merely in procuring the discharge of the innocent, separating him from the association of untried vagabonds and thieves, and sending him back to his family and business, to work out and work off the stain which even *false* imprisonment has set upon his character. But greatly advantageous has been that interference in behalf of the guilty, of him who had actually committed the act charged, but who felt the danger of his position as well as the error or turpitude of his conduct, and who needed only to be saved from the actual verdict of the jury and the sentence of the court, to become a candidate again for public confidence and general respect. To all visitors of prisons it is known that hundreds, who commit a violation of the criminal law, never feel the degradation of their act, or submit their minds to its disgraceful consequences, till they are made companions of culprits in the prison cells,—that to be known to the good as having done a notable wrong, is a mortifying means for repentance and amendment; while to be in companionship with the admitted bad, is to be almost certainly sealed to future infamy. This strong but correct view of the cases of new offenders, is that upon which the Agent has based his action; and it is not only due to

him, but to the plans and labors of the Society, to say, that while it is probable that some of those whom he, with much labor, has released from prison, have shown that they did not improve by his beneficent efforts, it is most true that by far the largest portion have shown by their subsequent conduct that they appreciate the benevolence that interposed in their behalf, and were ready to make the only compensation which is acceptable to their benefactor, viz., an amended life.

It is dangerous—it is at least wrong—to make a low estimate of the labors that take a human being from the cells of a prison, when his character is such as to lead to a belief that he will do no wrong, by example, to society, nor sink in the scale of morals. It is wrong to say that the verdict of a jury fully acquits a man, restores him at once and entirely to society, and wipes away the stain which a prison cell has imparted. Thousands hear of the charge who never know of the acquittal,—thousands recollect the man as the inmate of a prison, who have no remembrance of the full cause of his release. The adverse statement of the press, as it regards the act, or the adverse testimony on the trial, lives in the minds of many who do not know, or scarcely would care, about all that was said in behalf of the accused to induce a complete acquittal.

We know the power of conscious innocence; but we know also the effect of conscious disgrace. A man who has been imprisoned long, on a criminal charge, may, in his chamber, or in his family, feel the peace of a “conscience void of offence;” but, abroad in the world, he will feel himself continually on the defensive,—always anxious to show that he is still worthy of the confidence he seeks,—always fearful that some act or word of his, unnoticeable in others, may be construed as consistent with charges which he has publicly disproved; and he feels that the months or weeks of imprisonment which he has suffered, are not to be redeemed by a whole life of liberty and honorable conduct.

There is something in the atmosphere of a criminal prison which seems never to forsake the liberated prisoner: he feels its influence, and suspects all to be guarding against its infection. In his imagination, the deadly mephitic air is always about him. A reflection of innocence, or a sense of repentance and full reparation, may appease the conscience, but they will not take away the remembrance of the incarceration; and it is to be feared that such painful reflections have, when acting upon a morbid sensibility,

led to suicide, or to a return to crime. To diminish the evil, to lessen the effect of guilt, to save self-respect, and restore man to the duties and enjoyments of society, are the objects of the labors of the Agent, when he interferes to save even the offender from such a punishment as shall operate upon him beyond the demands of the law, and, reaching even over the culprit, shall bring misery and disgrace and ruin upon his dependent family.

It is in this light the services of the Agent are to be regarded. He releases hundreds of innocent persons, every year. He restores to family and friends those who have been detained for insignificant offences. He calls from the cells of the prison such as may have done acts that would have lead to a criminal life, and he gives them their freedom before association with the bad has weakened their moral perception,—before they can have formed resolutions to revenge upon society the offence of their incarceration. He assists to save the convict from a return to the haunts of vice, and the associations that led to his crime and his protracted imprisonment, and, supplying trifling sums, and aiding in the application of funds furnished to him, he has seen the prisoner leave the cell which he had occupied for more than a year, and return to a distant family, to commence a life of improvement, and become a useful member of the community in which he was reared; and it may be added that, in one instance, at least, while the care of the Agent, in connection with an Inspector, saved the released female from fulfilling an engagement of crime which she had rashly formed, it placed her in the bosom of a family that received her as a child, and made her feel all the comforts and confidence of home which can be felt by the repentant and the forgiven.

The immense saving to the city and county, resulting from the efficient labors of the Agent, by which is saved the cost of maintenance in prison, and of trial and acquittal in court, is worthy the consideration of the taxpayer, and is appreciated by the Inspectors of the prison, who administer the moneys appropriated to the maintenance of the imprisoned. This Society is specially concerned in the moral and physical results of the labors of the Agent, and feel that the objects proposed in the formation of the Society for Alleviating the Miseries of Prisons, have been greatly promoted by the successful labors which they authorize and which they approve.

The Agent of the Society for the County Prison makes a monthly report of his labors, and his small expenditures for clothing furnished to the

outgoing prisoner, and for his fare to some other place. These reports show the constancy and the value of his labors in the right direction. We have already mentioned the number of the releases secured by his efforts. We may, perhaps, appropriately repeat here a remark elsewhere made, that the services of the Agent are not required with prisoners whom the Inspectors are by law competent to discharge,—such as are committed for drunkenness, disorderly conduct, vagrancy, breach of the peace, and such offences; but to cases that require the intervention of the magistrates or the courts to release the accused, the interference of the Agent is directed. Among the many cases which he has reported to the Society, we select a few which serve to illustrate the character of his labors, and their influence in alleviating the miseries of prisons, and serving the cause of the unfortunate innocent, whose errors may have led them into questionable situations, or whose poverty may have placed them in bad company or adverse circumstances.

Case First.—A woman was incarcerated upon the charge of the larceny of two fifty dollar notes, of which she was innocent. Her imprisonment was very unjust. She was taken from her home, with her little infant in her arms, and committed to the prison, and separated from her three other children. The Agent ascertained on inquiry that the prosecutor had accused three other persons at different times for taking the money that the prisoner was accused of taking. When the Agent informed the “Court and District Attorney” of these facts, her case was ignored, and she was released from prison, there not being a particle of evidence against her aside from the mis-representation made by the prosecutor.

It is scarcely necessary to comment on this case, for though the justice of the movement is sustained by the judicial officers of the court, we have few of the facts which gave poignancy to the innocent sufferer.

Case Second.—Was that of a husband and his wife, imprisoned for the larceny of an old three-prong table fork, of little or no value, which he found in a pile of ashes in the street. He took, cleaned and repaired it, and put a particular mark upon it, such as he had upon all his tools in his workshop, he being said to be a respectable mechanic. He then gave it to his wife for the use of his family, and for *this they* were both arrested and imprisoned, on the oath of a quarrelsome neighbor, who testified that it was her fork, and she knew it by the mark upon it; which the prisoner said could not be the case, as it was he that put *this* the only mark upon it. It was certain that they both could not have stolen the fork, although each of them was committed to prison for the same offence. They were respectable looking people, who had never been in prison before. The woman was in great distress of mind, and on the eve of her confinement. They resided in “Columbia Avenue,” the extreme northern part of the city, and were sued before a magistrate in the extreme southern part of the city. This circumstance indicated a malicious

feeling on the part of the prosecutor, and particularly so in causing the mother to be separated from her infant child that had been left at home uncared for, as the officer would not allow her to return home and take her child to prison with her. And this was mainly the cause of her mental suffering that was so apparent to all who saw her. The Agent deeply sympathized with them in their unfortunate condition, and went to the magistrate and immediately procured their unconditional discharge, all of which had been done within an hour after the Agent's attention was called to the case. They were then released and permitted to return to their home, as it did not appear that they were in any way guilty of the charge brought against them.

Case Third.—Two young soldiers that were from the State of Maine. One of them was of a family of the highest respectability; they were accused of stealing a silver watch valued at \$18, for which offence they were committed to prison. When the parents of one heard of the imprisonment of their son, they addressed a note to the Warden of our Prison expressing their surprise at his imprisonment. They stated that they had never known him to do anything wrong, but to the contrary he had always conducted himself in such a way as to command the respect of all who knew him. They wished to know whether it was necessary to send on money to employ counsel to defend him. This letter was handed to the Agent, who made himself thoroughly acquainted with their case, and who believed they were innocent. The letter was answered, and the parents were informed by the Agent that he believed their son was innocent of the charge that he was accused of, and the case would be attended to free of charge, and that it was not necessary to send any money. It was not long after this that the Agent succeeded in ascertaining that these young men were entirely innocent of the charge they were accused of, and so far from having stolen anything, they had been robbed by their prosecutor. After having been induced to drink *liquor* that was drugged, they became intoxicated, and were taken out under the cover of night and laid at the door of the adjoining house. The very party that robbed them, went to a magistrate and made oath that they had stolen a silver watch of the value of \$18 from him; for which offence they were committed. They had been engaged in one of the late battles, and both of them were wounded and sent to the Chestnut Hill Hospital, where they had *partially recovered* from their wounds, and as they were *convalescent*, permission was granted them to visit the city, where they got into the difficulty. The Agent succeeded in ascertaining from one of the *inmates* of the tavern where the occurrence took place, that the young men were entirely *innocent* of stealing the watch, and that the prosecutor had actually *offered to sell* the watch the next day after they were imprisoned. Soon as this fact was discovered, the Agent got a *return* of the case from the magistrate, took it into Court, and informed the *District Attorney* of all the facts in the case; the prosecutor was sent for, but was nowhere to be found, as he had *suddenly disappeared* and left for New York, he having become *alarmed* at the Agent's interference in the case. Their case was laid before the Grand Jury and ignored, and they were released from prison and permitted to return to their hospital where they could have their wounds properly attended to. The Agent then addressed a letter to the anxious parents of the one that their son's innocence was fully established, and that he was *honorably discharged* by the Court. This intelligence was no doubt gratifying to them.

If this third case is well considered, it will present an instance of the value of the services of the Agent, and consequently of the value of the Society, which must be gratifying to every friend of humanity. It seems almost impossible to free our large cities from the haunts of the vicious into

which these young men had been enticed, and while they exist it seems certain that crime will not only abound, but progress, not merely in amount but in impunity. The feelings of those interested in the welfare and character of these young men, may be imagined when they learn of their release from prison and their full acquittal of the charge of felony. The course of vice had indeed been entered, and idle curiosity (at least) had been partially gratified in the dangerous exploration by these young men, and now perhaps they may understand the significance of monitions, against entering the path that leads down to destruction and associating with those “whose feet take hold on hell.”

MAGISTRACY.

Persons visiting the County Prison, are struck with the evidence that abounds of some great defect in the system of primary justice in this city; and the evils so justly and so greatly to be deplored, are often unhesitatingly referred to the incompetency or malfeasance of a portion of the magistrates by whom the vagrants, the drunkards, and the violators of the public peace are committed. Without offering an opinion at present on the question, whether we owe the results of which we speak, to the ministers of justice, or to the system upon which they receive their office, and discharge its duties, we are certainly right in saying that any attempt to alleviate the miseries of public jails, must first grapple with the administration of primary justice; must begin with creating a respect for the officers of the law, and must satisfy the accused that the object of arrest is not so much the profit of the magistrate as the benefit of society; and that while the balance is held with a clean and steady hand, the costs are imposed less for the benefit of the magistrate than for the punishment for a violation of the law and the improvement of the offender.

But before we can hope for any amendment of the system, we must enable the public to comprehend the reality and the extent of the evil which is deplored, and which it is the object of the friends of sound justice to correct.

The "Station-House" and the County Prison are crowded with persons who do not feel that they have done an injury to others, or at most, they think their offence is of a most venial kind. The offence of "vagrancy" is so undefined, that it is easy to commit almost any idle person upon such a charge, and equally easy to let him go. "Disorderly conduct," which appends to the offence of drunkenness, the punishment of a month confinement instead of a day is so uncertain in its character, that the jubilant politician is in danger of imprisonment if his huzzas are strengthened and

multiplied by even moderate potations. And “disorderly house” is made to cover all kinds of disturbances between singing loud to a crying child, and the repeated orgies of drunkenness and prostitution, just as “misdemeanor” includes all indictable offences below actual felony. And “abuse and threats,” that formerly expressed something definite, now fill the commitment with most undefinable charges, and the cells with most astonished and astonishing inmates.

The whole system of magisterial justice has, in this city, fallen into disrepute; and those who are the objects of its penalties, seem to lose respect for its ministers and their ministration, and to regard arrest and imprisonment as a misfortune which is as likely to fall upon one as another, if poor, and which therefore justifies any effort to evade the penalty.

This was not always so; we speak of the estimate of aldermanic justice. There never was a time when vice and crime did not abound in a great city, and, consequently, if respect for public rights exists, and a necessity for order is admitted there is likely always to be business for the police, and cases for the magistrates. But there is a mode of conducting both arrests and “hearings,” that makes the difference in the proceedings and their effects. And when we shall have looked a little more into the details of the matter as they are presented, we shall not only see the cause of the evils which we deplore, but shall rapidly and easily arrive at a conclusion with regard to some of the means which are to be employed to alleviate the miseries of public prisons, and thus see that the subject of which we now treat, is one that directly connects itself with the aims of the Society, and that it demands from us an opinion of the evil which it involves, and a consideration of the plans which may be suggested as a remedy.

The small income from the office of Alderman in this city is augmented by a salary allowed to six of them, who may happen to be of the right kind of politics to ensure their claims upon Councils to be elected Police Magistrates. The changes which the Charter of the City has undergone by amendments and substitution, have left Philadelphia in an anomalous situation with regard to offices. Every ward in the city has one or more Aldermen, who possess now little else than the functions of a justice of the peace. And the roll of officials bears also the name of a “Recorder,” yet that functionary has few if any other relations with the city government than has the humblest of the Aldermen; or if he has, it is some remnant of ancient

obligation to do service never required, or to demand fees seldom paid to him. No one can deny that the present Recorder discharges well the duties of a justice of the peace, so far as his power extends; but no one will say that the office is essential to any branch of justice in the city if all others are well executed.

We speak now rather in abstract, but it may not be out of the way to say, that the citizen who occupies at present the place of Recorder, seems to illustrate the idea of an efficient magistrate, as, without any particular call upon him, he has been a terror and a scourge to evil doers, and thus he magnifies his office, and makes it honorable.

The report of our Prison Agent, extracts from which have been given, shows to what an extent the evil to which we allude has already extended. His labors procured the release of more than a hundred persons every month. Now, though in many instances the prisoner thus released may have violated some law, and thus have rendered himself obnoxious to the penalties of the statute, yet in a greater part of the committals, investigation shows that the idea of just convictions did not enter into the complaint, and that the magistrate might have caused a settlement of the matter, without recourse to incarceration, in the infliction of fine; or at least it would be easy so to amend the laws of the State as to empower the magistrate to deal thus with the accused. Much the largest part of the commitments, however, are of a kind that do not often come to the knowledge of the Agent, but are referred to the "Visiting Inspectors" of the Prison. These are for drunkenness, disorder, breach of the peace, and vagrancy; and as an Act of Assembly gives to the Inspectors of the Prison the power to discharge persons committed for such offences, it follows that many committed for thirty days are released before the expiration of their term. Intoxication is charged, and the miserable offender is sent to the prison; perhaps a family is dependent upon his or her labor, or an infant needs the nourishment, which only a mother can afford; and the miserable mother is suffering from an excess of that from which only an infant can ordinarily relieve her.

An innocent woman has often been taken up in a grand swoop which a spasmodic effort of the police has made, and she is included in the long list of commitments as drunk, or a vagrant. Many of those who were guilty of the lower offences charged against them receive no good from their incarceration, and society is not benefited by their removal from the labor

which maintains them and a family, and the imprisonment devolves upon the city the expenses of the support, often both of the offenders and their families.

A considerable portion of the community that have acquaintance with the prison by commitment, are of a class that think all personal redress, and all protection from wrong, and all safety from the consequences of their own misconduct lie in an appeal to the magistrate, and a trifling quarrel in a neighborhood frequently leads to the arrest and incarceration of the principal members of several families, and the offending and the offended parties are often seen withdrawing from the contests of hands and clubs, and contending in a foot race to see which shall first enter complaint before a magistrate. Often in these matters both succeed; each contrives to get his antagonist into prison, and mulct him in costs. Occasionally it happens, that “the race is not to the swift;” success is found to depend on the possession of the means to pay the first cost of the action. Perhaps the most painful, because the most unrighteous, of this kind of suits, are those in which a quarrelsome drunkard, having beaten his wife, proceeds at once to the magistrate and charges her, on oath, with assault and battery, or with assault and threats, and the poor woman comes down to the prison with her head bruised, her eyes blackened, and her whole frame bearing marks of the outrageous injury inflicted by her cowardly, drunken husband, who, after a few days, finding his household matters in some derangement for want of a female head, obligingly releases his wife from prison, till his time for another debauch has arrived. Nor is it to be denied that the drunken wife often, very often, brings the husband into similar difficulties. In some of these cases a magistrate might, by interference, mitigate a portion of the misery which is inflicted, and by his friendly advice prevent much that usually follows.

This constant resort to litigation in those who have no “cause” but what they create of themselves, is one of the crying evils of the times. The facility of a warrant, and the knowledge that the facility results from its price, cause a large portion of the cases which reach our courts of justice, or are settled, “with costs,” between the Alderman’s office and the jury-room.

Another class of cases is found in the prison—that of disorderly houses. Now it is well understood that the term “disorderly house,” has a specific signification when connected with a charge before an Alderman; yet, on

enquiry as to the character of the “disorder,” it frequently happens that the offenders were in the exercise of customary rights in their own apartment. Singing, perhaps, or talking loudly; or, it may happen, that not even such disturbances are mentioned. But the proprietor of the house, usually an under-letter, can do better with his contracted premises by a larger rent, or more ready collection, he therefore incurs the cost of magisterial interference, the tenants, he knows, cannot find freehold bail, they will sell a part of their goods to pay back rent and cost, and for the sake of exemption, or release from confinement, will agree to leave the rooms, and thus the prosecutor secures the first object of his unjust movement, and is saved also the cost of a defeat in court.

The number of persons committed on the charge of “disorderly houses,” is astonishing; especially when it is considered how many “disorderly houses” remain unvisited, and the occupants not arrested. But we must not forget the fact, that the movement of the magistrate in these cases is sanctioned, perhaps required, by the solemn oath of the complainant.

With these remarks we are led to the consideration of the subject with which we commenced this part of our Report, namely, THE MAGISTRACY, and their alleged complicity in the evil which we deplore, and which we would diminish for the sake of the miserable victims of temporary power, and for the sake of the credit of our community.

On all sides we hear the complaint of the character and conduct of the Aldermen of the city; many of them, it is stated, use their office to extort from the unfortunate poor, a portion of their hard earnings, and thus deprive the homes of the laborer of the little comforts of which they are susceptible. They entertain complaints, it is said, of acts which need not be construed into offence against the law, and thus encourage litigation, and perpetuate feuds among those whom it would seem to be their duty, as magistrates, to “keep at peace with all men.”

We have already enumerated and repeated the classes of cases which most encumber the dockets of the Aldermen, and which are made of more importance than they deserve by the effects on the income of the magistrates which these causes produce. But the enumeration and repetition alone of these would not be a part of the duties of this Society, or form a portion of this Report, if they did not suggest a call for remedy. It is not the

evils of prisons that constitute the object of this Society, but the melioration of those evils.

Taking, then, the existence of the evils, as we have only hinted at them, and admitting (as we are free to do, and as we do with pleasure, because it is just) that while the cry against the magistracy is universal, the fault is really found in only a part of them, the inquiry is, “how shall all this be remedied?”

“*Elect better Aldermen,*” say those who wish for a better state of things. “Elect suitable men, and the evil is at once remedied.”

Undoubtedly the plan is good; but is it practicable? For many years the Aldermen of Philadelphia have been elected by the people, and in many instances the choice has been judicious, but in others either the official conduct of the magistrate has deteriorated into the grossest kind of improprieties, or he has been compelled to give place to some greater favorite of the voters of his ward, who would begin his descending march some grades below that at which his predecessor closed his career. So large a portion of the duties of the Alderman who has most to do as a police magistrate, are beyond the knowledge and sympathy of the respectable portion of the community, that little interest is taken in his election by those who feel a sense of shame at the improprieties of a functionary connected with the administration of justice; and in many parts of the city the knowledge and sympathy of that class would avail nothing towards the election of another person.

The Grand Jury recently inquiring for the city and county of Philadelphia, made the following severe strictures upon Aldermen:

“It has been a matter of exceeding regret that the law has not clothed this body with discretionary power to tax the magistrates, before whom the cases were heard, with the costs, as a proper rebuke to that avarice which seeks to convert litigation and contention into a source of gain,—which offers a premium for crimes, by making the ministers of the law the transgressors, and prostituting the province of peace-makers to that of a common barrator.”

As the Grand jury did not, of course, desire to be directly personal when they were not about to find a bill, they let their censure take a general course. They set forth an evil, and that, perhaps, was enough, till some special case of wrong should be laid before them.

But the alleviation of the evil—the remedy. It is evident the remedy is not in the ballot-box—the root of the evil lies far back of that; nor is it in the statutes of the Commonwealth. The Constitution of the State is in fault; and until that is modified, or till some act of the Assembly can be passed superseding the Aldermen in their special police duties, we cannot hope for any diminution of the evil. The Aldermen of the city are elected by the voters of their own wards, and he who can command the most votes, can, if he desire it, be chosen Alderman. No man of wealth seeks the place,—no man of business habits asks for a nomination. The rewards of the office are, at best, below that of ordinary business; and the distinction which the place confers is not that which gratifies the wishes of the ambitious. But the place is coveted and obtained, its emoluments spring from the fees paid by those who come or are brought before the magistrate. If his business is multiplied, his profits, of course, are increased; and as he sought the place for the means of a living, he must avail himself of the capabilities of the place to augment those means. If people will “sue and be sued,” if people will fight and go to law, if neighbors will quarrel, and then drag each other before the magistrate, it may seem, to the functionary, rather a thankless exercise of his ability, to recommend such an adjustment of the case as will deprive him of the fees of office, by which he lives. And while most philanthropists would applaud the magistrate who sat to reconcile rather than to punish,—who dispensed with his fees while he dispensed kindness and affection rather than justice,—it is probable that the family for which he was bound to provide would have to look to some other means of support than those supplied by the man who looked to the peace of the neighborhood rather than the augmentation of fees. And it may as well be added, that the magistrate who should thus employ his functions, would soon fail of objects, provided another alderman could be found who would grant to passion its first demand. For it is evident that most of the complaints that come before our aldermen are brought by those who seek to gratify personal animosity and a sudden desire of vengeance rather than any wish to punish the wrong-doer for the sake of right. We must take men as they are, not as we could wish them to be. We must recognize in the office of an alderman the means of support for the incumbent and his family; and while all around us, men are exercising their talents and taxing their ingenuity, to gain wealth by the advantages which the law allows, we must not suppose that the alderman is to sit in magisterial quiet, and suffer the vails of office

to escape his grasp, when they are the fruits of a labor sanctioned by law or warranted by official custom.

If we would remedy the evils about which so much has been justly said, and concerning which the Grand Jury has spoken so plainly, we must do something more than talk and complain.

We have already said the evil finds its source and sanction in the Constitution of our State. The change of the whole mode of supplying the magistrates and judicial officers, that was wrought by the present Constitution, may have corrected some evils: the general question is one which we are now not called upon to discuss; but we may say, that experience shows that nothing has been gained with regard to the administration of justice in the magistrates offices of our city. Twenty-five years experience shows that none of the evils complained of in this department have been diminished, while most of them have been augmented, and new ones added to the list. This seems almost a necessary result of the system, and thus calls for prompt, effective remedy.

What is required in Philadelphia, is a class of Police Magistrates, with a salary that shall secure and compensate the services of competent men, who shall have no pecuniary temptation to commit any person brought before them, and whose character and condition shall give weight, no less to their decisions than their recommendations. Placed by the tenor and fixed reward of their office above dependence upon those who shall demand justice in others, or receive it in themselves, they shall not shrink from their duty to condemn, more than from their sense of propriety to discharge.

Of legal qualifications we have little to say. The layman, fitted by character and ordinary education for the place of police magistrate, might soon become sufficiently learned in the law and requirements of his place, to discharge with fidelity and success the duties thereof. A considerable number of those now holding the office of Alderman, and as such elected occasionally as Police Magistrates, show themselves competent to all the duties of their office, and worthy of the position which would be opened to them, should the reformation that we suggest ever be made. It is not always the man,—it is the circumstances in which he is placed; it is the necessities of nomination, the demands of the election, and the condition into which the office has been brought, that hinder some in their attempts at good, and

deprive the city of benefits from the services of those who, under other circumstances, would promote public order, and acquire honor by their administration of justice and their exercise of humane powers.

And while so much freedom has been exercised in censuring the official conduct of some of the Aldermen of our city,—a freedom that is suggested and can be sustained by facts,—it is due to the cause of truth and justice to repeat emphatically what is readily admitted above, that many of the magistrates are eminently deserving of commendation, as well for the abilities they possess, as for the use to which those abilities are applied in the discharge of their vexatious duties. And it may be added, that some of those who have been most censured, have shown themselves possessed of good feelings, and amenable to the requirements of courtesy and humanity. The system is in fault; and till that is changed for the better,—reformed altogether,—we cannot look for any considerable improvement in the administration of justice in police offices. For it is a lamentable fact, that such is the want of confidence in some of the magistrates, that the decisions of the able and the good are treated with a distrust most dangerous to public order.

Our judiciary, from the lowest offices to the highest, was derived from England. The names of the officials, the cause of their proceedings, the rules of their action, are all from the parent country. If we have not derived from these all the benefits which might be expected, and all we see England enjoy, it is worth while for those interested to inquire what has disturbed public opinion, what has weakened public respect, what has augmented the law's delay, or what has strengthened the general opinion of its uncertainty. So far as such feelings, if any such exist, may connect themselves with the "courts of record" of our State, it is not the object of the present Report to discuss the cause, to point to their extent, or suggest a remedy. But we have legitimately before us the evils of a bad system of minor justice, and we are therefore right in suggesting a remedy.

The progress of society abroad suggests remedies for evils which it is the duty of the people of this country to consider. And the mode of administering justice in police courts in London, eminently deserves the attention of those who deplore the deficiency and seek for a substitute in Philadelphia. It is simple, easy, practical. Magistrates of established character are appointed, to hold office during good behavior. They have a

salary ample to maintain themselves and a family. Their office has with it something of the character of the Court of Sessions, and thus there attaches to their persons an idea of judicial dignity, which is to be respected on the police bench, and which respects itself when in the world. These officers are not tempted, by inadequacy of income, to augment the business of their office, that they may profit by costs or compromise. Those who are compelled by business or misfortune to appear before them, feel that respect is due to the administration of justice in its incipient stages, and a large portion of those who are charged with the violation of law, appeal with confidence to those magistrates for summary proceedings, (which the law there allows,) in preference to the delay which would attend a reference of their case to a jury. Such a power on the part of the police magistrate is found most advantageous to justice in London, resulting in great saving to the city and county, without lessening the terrors of the law,—rather augmenting them by the promptness of punishment.

Should the Legislature of the State be disposed to remedy the existing evils in this city, by providing for an alteration in the Constitution, by which the mode of acquiring, and the terms of holding, office by the Aldermen shall be changed, it is possible that an enlargement of power, such as we have noticed in the London magistracy, would be granted, so that justice would be promptly as well as carefully administered.

We have, in this chapter, touched upon one disturbing element, and we have done it with no view to cast indiscriminate odium upon any citizen. The evil to which we have adverted, exists. The great cause, however, of the evil, we have shown to arise out of the Constitution of the State, or from a deficiency of legislation. We lack no talent in this city for judicial or magisterial place; but we have failed in attempts to call those talents into the best exercise, and to insure to them the highest public respect.

There is, however, another disturbing cause, which we must look at steadily, if we would understand its bearing on society, its influence on morals, and especially its connection with the subject of prison occupation and prison discipline. And especially ought we to present the subject in immediate connection with a consideration of the Magistracy. It is *Intoxication* that crowds the police office and the alderman's tribunal. Hourly is the magistrate called to commit or fine the violator of the law of temperance. The miserable wretches come into his presence without power

to discriminate between right and wrong, with no command of their own movements, and no sense of propriety with regard to conduct or conversation; and complaints are sometimes made that these creatures are not treated with suitable consideration. Let us, when we consider the duties and conduct of magistrates, not overlook the disgusting materials to which they are to administer justice, nor blame them if they sometimes suffer the prisoner to hold the rank which he assigns to himself.

INTEMPERANCE.

Of any two hundred persons committed to the County Prison, probably one hundred and fifty owe their incarceration to drunkenness. Assault and battery, breach of the peace, misdemeanor, vagrancy, abuse and threats, disorderly conduct, and other charges which figure upon the commitments sent by the magistrate with the prisoner, are often only other terms for drunkenness and only varieties in the *charge* or slight additions to the offence; and even the higher offences against the law are frequently referable to, or connected with, intemperance in the use of intoxicating liquors; and it generally happens that when the prisoner is questioned with regard to the temptation to steal, to fight, or commit some other misdemeanor with which he stands charged, he replies that he knows nothing about such acts, he only took a drop too much, or was a “little tight;” he remembers a mass of things, yet nothing distinctly, and professes to feel greatly injured in being committed for a misdemeanor, when he had done nothing but get drunk; or that he should have been charged with assault and battery when he had only beaten his wife or struck the officer that arrested him; nor does he find it reconcilable with justice that he should be charged with abuse and threats for merely cursing the magistrate and offering to break his head at a moment of greater soberness. This vice of excessive drinking is then so intimately connected with the administration of justice, either as a motive or a stimulant for offences against the law, that it is deemed proper to consider it more closely in connection with prison discipline, in order that we may understand what are the duties of society in regard to its means and subjects, and thus we may also comprehend how entirely its suppression becomes a means of ameliorating the condition of public prisons. If we would lessen the evils of prisons, perhaps the most important step would be to diminish the number of prisoners. To strike from the list of offences that offence which is the parent, the assistant, and the offspring of so many more—would seem to be a great advance in the work

of those who seek to denounce vice as well as to correct the vicious and criminal.

How drunkenness is to be diminished in our community, is a problem difficult of solution. Attempts have been made of various kinds, with various degrees of temporary success; but the appetites of one class and the cupidity of another, seem to baffle the efforts of the benevolent and counteract the enactments of legislatures. It may however tend towards an amendment, that something of the extent of the evil should be made public.

The means of intemperance are indeed public and its fruits abound, but very few stop to notice the extent of any habit that grows up gradually in a community and is consistent with general customs and taste, and only to be condemned for its excess, or only to be entirely condemned when its excess shows that the evils of abuse outweigh all advantages of moderate indulgence. Not many who read this report have thought to note the multiplied number of shops, saloons, taverns, hotels, casinos and cellars, whose maintenance is the profit on the sale of intoxicating liquors; yet these places present themselves all around us, and in certain parts of the city they are in such abundance as would lead one, a stranger to our domestic life, to suppose that the chief employment of the people was vending liquors, and the principle food was whiskey. Fifty grog shops and liquor stores are found for one bakery, so that Falstaff's "penny for bread and a shilling for sack," seems no longer an extravagant partiality for liquids over solids; and, if it should be said that many families bake their loaves instead of depending on the bakers for their daily bread, it may with equal truth be replied that thousands of those who reach Moyamensing Prison for drunkenness, maintain a household altar to intemperance, at which their neighbors also sacrifice (themselves and their character) in devotion to the social jug, from which drunkenness can be imbibed without the expense of a license or the payments of profits to the retailer.

Can such things be, and drunkenness not abound? Can so many places for the sale of liquor be maintained with gain to the proprietors merely upon the profit of getting people drunk without a terrible deterioration of public morals? It is proved by the revelations of our courts of justice, by the confession of prisoners and the statements of sufferers, that many of the keepers of these drinking places augment their profits by other crimes than that of intoxicating their fellow-men, by making indeed intoxication only a

step towards almost every other species of criminality; and while the prison cells are crowded with the offenders and sufferers from these haunts of vice and crime, thousands leave unrevealed their sufferings and their losses rather than expose their weakness and vice in frequenting such resorts and yielding to the temptations of the place.

In presenting these remarks on the means and extent of intemperance, it is not to be inferred that the Philadelphia Society for alleviating the miseries of prisoners, is about to resolve itself into a temperance society, or create a committee to lessen the evil of intoxication. This society has its specific duties, which it endeavors to discharge fully and profitably; but if vices and woes cluster, virtue and peace also associate,—and if we would lessen any considerable evil we must seek to diminish its cause. This society has incidental association with almost all the benevolent and humane institutions of the city. The repentant, impure female is recommended to the Magdalen, the Rosine, or the Good Shepherd. The female vagrant or the thief, is conducted to the Howard Home or some other refuge with which the Committee or the Agent is in correspondence. The young are transferred from the cell of the prison to the care of the House of Refuge. Is it then less consistent with the objects of this society that it should put itself in harmonious action with those who would lessen the overwhelming vice of drunkenness by which the cells of our prison are crowded, not only by drunkenness, but by those who having by drunkenness forfeited the esteem of society and lost their own respect, sink into lower debasement and lose all distinction between vice and crime, and practice theft as the means and intoxication as the end of living.

No one unacquainted with the life of a drunkard, but especially of an habitual female drunkard, can form a correct idea of the irrepressible thirst which the constant use of intoxicating liquors imposes. In a man it is usually a love of the *taste* of drink and the habit of social drinking; and the habit is often broken and the male drunkard restored. In woman the desire is for the *effect* of liquor, the feelings to which it gives rise; and the indulgence is more frequently solitary than social: and however strong the sense of wrong, however deep may be the regret for the folly when the evil moment of intoxication is over and the secondary results succeed, still it rarely happens that the repentance is deep or the amendment permanent. We do not know how many women have triumphed over a strong appetite for

intoxicating liquors; thousands, of course, have solemnly but terribly wrestled with the deadly enemy and conquered; many thousands maintain “the irrepressible conflict” with various degrees of success; but the prison and the almshouse records show that with another class, mighty in number and important in interest, resistance is relinquished, shame forgotten, and the daughter, the wife and the mother confess themselves the captives of that one vice which sacrifices every female virtue to the gratification of rapacious appetite. This subject commends itself to the regard of the philanthropist, it calls for the attention of the magistrate, and it asks for some new legislation; what that legislation should be in detail, we do not pretend to say; our duty in the capacity in which we now act is done when we thus expose the evils whose existence and a part of whose terrible effects we discern in our prison visitations. We do not exaggerate the means nor the devotion to drunkenness in what we here state. The inducements to intoxication are double those which we have mentioned, and all vices and passions are made subservient to the work of selling liquor, while the effect of the poison sold is promotive of other vices. The accursed bottle is not confined to the house, the cellar, the dram shop, nor the saloon, it follows the miserable devotee to the police station, and the very van in which the drunkard is conveyed to the prison has its illicit bottle, so that if a single one of the inebriates should have failed of the necessary quantity for entire intoxication, or one should have recovered a gleam of reason, there should not be wanting the means of completing or restoring the work; and, it may be added, that it is with the utmost vigilance that the officers of the prison are enabled to keep intoxicating liquors from the cells. It is a melancholy fact that the husband endeavors to smuggle a contraband bottle into the cell where his wife is confined for drunkenness; and mothers while lamenting the hereditary misconduct of their daughters, seek to convey comfort to the young offender in the form of coffee strongly “laced” with whiskey. The right hand of fellowship extended through the aperture of the cell door, is the means of conveying a phial of brandy carefully deposited in the ample sleeve, and the affectionate friend that comes to sympathize with her incarcerated companion, exposes as she reaches forward to reciprocate a kiss, the forbidden bottle hidden in the bosom of her dress. It is then not only the appetite for whiskey against which opposition is to be made at our prison, but the deep sympathy which is manifested for those who suffer for a want of means and place to gratify that appetite.

Undoubtedly an immense saving in city expenditures would be made, to the relief of the tax-payer, if such an abuse of humanity could be corrected. And while we know that society would recognize at once any successful effort to suppress drunkenness, we feel that a moral desolation would be removed, could we cut down root and branch, the terrible Bahan Upas of our country, whose pestiferous branches destroy all vegetation beneath their ample shade, and spread misery and ruin throughout the circle of influences.

We dare not say however that, because almost all who are brought to the County Prison are habitual drunkards, that the entire *abolition* of intoxicating drinks would depopulate our prisons. The experience of the world is different. In Great Britain, Ireland and Germany, the frequenter of the prison is usually a drunkard. In Italy, especially in the South of Italy, drunkenness is almost unknown among the natives. Three years' residence in the city of Naples failed to present to the narrator a single instance of a drunken Neapolitan, high or low, rich or poor; while frequent visitations to the prisons showed them amply populous. Perhaps there is in Italy some prevailing vice as productive of evil as drunkenness—perhaps drunkenness is in other countries the resort of the bad—of men and women who seek the gratification of a diseased appetite, not as a consequence or means of crime, but only to enjoy such gratifications as are consistent with and are punished by crime. The destruction of the Bahan Upas then may not restore herbage to the field; nay, to find a comparison nearer home, the stately pine is often cut down that culture and care may ensure a profitable crop for the soil which it has overshadowed, but a single season's neglect shows that in the same earth there lies concealed the germ of other trees and shrubbery, and instead of the single overshadowing object, fifty smaller ones spring up to occupy the ground and prevent the growth of herbage. So the avoidance of a great leading vice does not without watchful care insure with certainty a growth of gentle virtues, some lesser passions, some yet uncultivated appetites that lie latent in the heart, spring into active growth, and become as dominant by their multitude as the ruling one did by its single power.

Yet however appalling may be the vice that is adopted by those who do not fall into the habit of drunkenness, there is always more hope of reclaiming the unfortunate male offender, whatever may be his vice, than there is of inducing the female inebriate to forsake the bottle. Larceny is

committed to supply some want, not to gratify an imperious appetite; it leads to solitary confinement for a length of time, and the thief is easily persuaded to reflect, and often induced to amend. He understands, indeed, that his offence is directly against others, and that it provokes the injured to visit upon him the penalty of the violated law, and the anger of an offended society, that arms itself against him. The poor drunkard awakens from his debauchery, and finds a craving thirst for that which prostrated him, and feels that as he has done little or no direct wrong to others beyond his family, his offence is against himself, and the offended one in such a case easily pardons. If it is a female, it is not merely the love of liquor, in the use of which “increase of appetite grows by what it feeds on,” but it is that desire for the forgetfulness of sorrow, that love for the excitement of the nerves, that oblivion of the unhappy past, and that elevation above the miserable future which distinguishes her delirium of drunkenness from the effects of intoxication in man.

The impure female, in her rapid descent, is rarely unmindful of her degradation; and thousands are redeemed from vice by the kind interference of the humane; but when once she has found in the use of intoxicating liquor that paradise of the drunkard, she is rarely ever led by persuasion to return to reason and sobriety; nothing but forceful restraint will keep the wretched victim from the use of the means, and that restraint will not quench the thirst, nor diminish the desire, for the deceptive dreams of happiness.

Prevention! Prevention! domestic discipline, social care, and social censure, can alone diminish this evil, and free our community from that awful scourge—a drunken woman—and alleviate the miseries which are found in the cell of the inebriate prisoner.

It is not to be denied that there has been a great increase in the habit of using intoxicating liquors within a few years. It is a growing evil of terrible dimensions and appalling effects; and the worst part of the curse is its continued augmentation. How is this evil to be lessened? How is society to be saved from the terrible maelstrom, which seems to draw all to its eddying circle, and involves in ruin all that it embraces. It is not the business of this Society, perhaps, to resolve itself into a “temperance association;” but there are precedents in its proceedings for direct action in the matter, at least so far as concerns the prisons. We have asked, by solemn

resolve, that the use of tobacco may be restrained in the cells; not, perhaps, merely because tobacco is in itself so injurious, but principally because the use of that narcotic creates a thirst, which seems to have no appeasement but in strong drink. To use a salutary and direct influence, then, in diminishing drunkenness, must *a fortiori* be within the plan of our Society.

But it may be said that while the use of tobacco has generally been among the admissible indulgence of prisoners, strong liquors have not been allowed. It is by no means certain that in other times the laboring prisoners were not allowed a regular, limited, supply of strong drink, but certainly not lately; yet as it is admitted that most of the criminal and vicious that are sent to our prisons owe their confinement to drunkenness, or at least make their condition worse by intoxication; and especially, as it is evident, that efforts to redeem from crime the released, are defeated by the facility with which intoxication may be had, it can scarcely be doubted that the Society is in the exercise of its legitimate powers, and in the discharge of its assumed duties, when it encourages all good efforts to lessen the prevailing sin and disgrace of the age, and lends its sanction to efforts directed to the diminution of the habit and the means of drunkenness.

How shall that be done? Shall this Society initiate a plan for promoting temperance, or shall it lend its hearty co-operation to some association that shall have for its principal object that which could only be a branch, a true, living branch, indeed, but only a branch of the duties of the Society for alleviating the miseries of prisons?

This Society can at least, and by the adoption of this Report, does, bear solemn testimony against the prevalence, the multiplication, and the existence of the magazines of mischief, where drunkenness is secured by the cost of the honor of the inebriate, and the disgrace of Society. Citizens who watch with most painful vigilance the action of the City Councils that enhance or diminish by a *single per cent.* the tax upon property, would consult their own interest more if they would look into this one cause of the increase of rates. But our business with the subject is in the interest of humanity. That is cheapest, at whatever cost, which produces the greatest good of the greatest number; and the good of the greatest number must depend on the promotion of sound morals.

With such a view of the prevalence of intemperance, and with such an avowal of the motives of humanity with which this Society regards all vices or crimes that go to make up the sum of the miseries of our public prisons, it may not be improper to state that among the institutions which humanity has yet to establish in Philadelphia, (it has already suggested it,) is a hospital or place of reception and treatment of inebriates. The prison punishes them, it does not cure; and few, excepting those who have seen the drunkard in the agonies of *delirium tremens*, or the terrors of *mania a potu*, can comprehend all the evils which the drunkard accumulates upon his own head, (the domestic misery which he insures, and the general scandal which he causes, may be otherwise considered,) but the personal suffering of the drunkard, after his committal for protracted debauch, is beyond description. It is not without some reason that the cells of the prison which are especially devoted to cases of *delirium* and *mania* are denominated "Purgatory," though it would seem from the unutterable agonies and indescribable apprehension of the inmates that even if they should "go farther," they would scarcely "fare worse."

It is hoped, that when the national troubles that now occupy public attention, and draw upon the fiscal means of our citizens shall have ceased, there will be some effort in the direction of a "Hospital for Inebriates," where proper moral and physical treatment may restore to families and society, those whose intemperate habits have alienated them from the affections of friends, or failing to restore them to reason and propriety, a home may be provided where they cannot by habitual indulgence, degrade themselves further, and by which families and friends may be spared the disgrace of a drunken inmate.

HOUSE OF CORRECTION.

In the preceding divisions of this Report, it has been shown that the County Prison is peopled and re-peopled by persons who pass regularly from vice to vice, or from one degree of vice to another, marking their progress with a short residence in the cells of the prison, remaining at the longest only thirty days, and associating with those who may be their teachers or pupils in misdemeanors. It is not pretended by those who send these offenders to the prison, that the incarceration will amend their habits,—it is only the means of punishment; nor is it more than desired,—scarcely to be hoped,—by those who seek to alleviate the miseries of the prison, that the confinement of thirty days will tend to repentance and amendment of the vicious offender.

It is evident that more is required,—more in the way of wholesome discipline, more in time, more in direct appeals and instruction, more in the enforcement of industry. The prison cannot do much more than it is doing for the vicious. The solemn pledges of the intemperate to avoid intoxicating drink are slightly regarded when the means of violation are enticingly offered, and all the vices which have procured imprisonment lose their terrors, or double their attractions, when the temporary punishment is accomplished.

It is evident then that we need a resort for the vicious that will offer to society some hope that even if the vice is not avoided, the vicious shall be kept where they will cease to degrade society by their misconduct and lead others to destruction by their example.

We need a “House of Correction,” a place to receive those men and women who will not be reclaimed by monitions, or short confinement. We need a place where time for thinking can be found, and where the food for reflection may be supplied.

But in this case we cannot throw the censure for deficiency on the Legislature of the State. The wants of the community are admitted, and the right to supply those wants granted: the means are withheld by the city authority. Resolutions for building a Municipal Hospital for the reception, care and cure of those attacked with the small-pox, are adopted, and the means for carrying into effect those resolutions are supplied by the Councils of the city. That is well, and denotes a paternal care, on their part, of the interest and health of their constituents. But why—when authority is given, why not provide a Hospital for those struck with the pestilence of drunkenness and the accumulated miseries that come in its train? Is there a disease in the whole catalogue of human suffering that is more epidemic, if not contagious, than intoxication? or is there one that multiplies itself more by social contact? And why then should the vagrant, the breaker of the peace, the drunkard, multiply his or her disease more than the sufferer by the small-pox or cholera? If the hospital for the small-pox is a retreat for the sufferer, and his family and neighborhood need to be relieved from the danger of his condition, the House of Correction would be no less an asylum for the vicious, in which they could grow better by care, and escape the evil of communicating their mental disease to their neighbors.

In whatever light the House of Correction is regarded, it presents the highest claims on society for its establishment. Is it to be a place into which the vicious are to be driven by the law, that they may be punished for their offence, and society saved the disgrace and danger of their presence? Society has a right to demand such a forceful withdrawal of the elements of crime from its midst. Is it to be a place of enforced refuge for the willing or unwilling victim of vice, where habits of disorder may be broken and new habits of industry and propriety established, where good counsel shall make reasonable and acceptable the moderate discipline of the place, where good example shall illustrate the lessons of good morals, and the exhibition of orderly propriety of the place be made to contrast with the squallor and misery of the resorts of vice from which the inmates have been gathered, and thus virtue enforced and resolutions of good formed, and their exercise for some time at least insured? Then it is solemnly urged that the House of Correction is called for by all that humanity can contrive and sound policy can suggest.

In this matter the Society has done its part, and is ready, when empowered, to continue its labor in the direction of amending the vicious. But whether the Society have or have not any direct relations with the House of Correction, it must feel that the interests of this great community, of humanity and of virtue, suffer by the delay in providing for its erection. If there be truth in the statements submitted with regard to the number and character of those who are habituées of the County Prison, we need no argument in favor of the House of Correction.

AUXILIARY SOCIETIES.

“To do good and to communicate” should be the object of every philanthropist, as it certainly is the aim of this Society; and it is with pleasure that we now announce that a correspondence between the President of the Society and several distinguished gentlemen in different parts of this State, warrant a hope that before long, Societies, auxiliaries to this, will be established in various counties of the Commonwealth, and the philanthropy of the good of both sexes will be called into new action and concentrated upon the great object of lessening the miseries of public prisons in their neighborhood, by suggesting improvements in the police and general administration of the establishments, and by dealing directly and affectionately with the miserable inmates of the cells or the crowded rooms.

The correspondence with those to whom the measure has been opened, shows a readiness on the part of some to begin the work; but prudential considerations have suggested a postponement of the undertaking, in some counties, till a strong and steady co-operation can be secured from those who are now absent in the service of the country, or till the state of the country will allow men of public spirit and of philanthropic principles to withdraw their attention from national matters. Certainly a postponement upon such grounds is to be preferred to a failure of efforts from a want of thorough co-operation.

It is desirable that auxiliary societies should be established, in order to call into exercise, and direct into proper channels, the spirit of philanthropy that abounds in our State, and to give object and employment to that self-denying devotion which marks the character of woman, and is found in a class of men that rarely are named with public benefactors, though they are found, when opportunities present, where humanity has its most repulsive duties and earns its highest rewards.

A correspondence between the parent Society and its auxiliaries in the interior of the State, or with independent associations laboring to the same end and with similar means, would diffuse information that would stimulate exertion and promote the great object of alleviating the miseries of prisoners. Especially would such auxiliaries often assist the agents and committees of the parent Society, by information as to the character of prisoners, and aid in procuring employment for the repentant vicious and criminal, who would strengthen their good resolution by seeking occupation where the chance of meeting old associates would be greatly diminished, and where temptations to a recurrence to former faults would not abound. It is now believed that the hopes of forming these auxiliaries will soon be realized. But there has always been found some difficulty in the first steps towards an organization. The willingness of many needs information to strengthen resolve; and especially is it found that where there is to be a concurrent action, there is great need of some representative of the views and sentiments of the parent Society, to concentrate and direct the efforts of those who, with the best motives and most earnest wishes for success, pause upon the initiatory step, from distrust as to their ability to organize and direct a society, or an apprehension that they may lack the hearty co-operation of others no less philanthropic or energetic than themselves.

We, perhaps, then shall need, at a proper time, some representative of the parent Society specially deputed to stir up the public mind in the direction of humanity in prisons, and to take advantage of the effects of his labors to unite the exertions of the good in the form of auxiliaries, that shall have their committees in every place of imprisonment, doing the work of philanthropy by alleviating the miseries of prisons and improving the moral condition of the prisoners. These auxiliaries will aid the parent Society in influencing legislation favorable to the cause of humanity, and, in proportion to their number and to the character of their members, they will be felt and their power acknowledged by the Representatives of the people, not in any attempt at dictation, but in the mild, steady presentation and advocacy of measures of amelioration that shall triumph by their inherent beauty and mercy, influencing public sentiment and purifying legislative enactments.

In a subsequent part of this Report, under the head of "Correspondence," will be found large supplemental abstracts of British Parliamentary Reports;

and it is thought that a few words explanatory of the British and Irish system might, in this part of our Report, be made useful in aid of the plan for auxiliaries. England has learned much from us in the work of Prison Discipline: we might learn something of her, (more, indeed, than we *shall* acquire,) were our institutions more assimilated, and especially were we as geographically circumscribed as she is.

The "Prison Reports," physical and moral, in Great Britain, are all to the Government of the nation; and every part of every city jail seems to work with as distinct a reference to the whole system of prison regulation as the lower clerkships of a State Department do to the administration of the whole. This, it must be admitted, is easy in that country, where there is but one legislature to direct, and one government to administer and execute. It would be impossible in this country, for the National Congress to issue ordinances for the administration of *State*, county, and city prisons. To say nothing of State rights and State sovereignty, there would be insurmountable difficulties in prescribing and carrying out rules for prison discipline and dietaries for all the jails from Oregon to Maine. So that, when we read of the happy and harmonious working of the prison laws in Ireland and Great Britain, we must call to mind the proximity of each establishment to the other, and of the whole to the Government, to whose chief officers they are bound to make report, and with whose agents they are bound to co-operate. In England and Ireland the difference of longitude is so small, that, by the Sovereign's command, it is made mid-day at the same moment in both kingdoms. In the United States, something more than human power would be required to work out that wonder, and something more than constitutional prerogative would be necessary to enforce it. We must take things as they are, and work with the means and in the space which are allowed. If we cannot expect national interference in behalf of prison discipline, we certainly may appeal to the State in which we live to exercise and dignify its sovereignty by legislation that will adapt prisons and their discipline to the use of society, and while the House is one of penal discipline, it shall be a place of moral improvement. We scarcely expect the Legislature of the State to initiate the good work. It is the duty of those who feel most anxious for its establishment, to prepare the means and present the arguments; and it is believed that no means of inducing a systematic arrangement of prison discipline throughout the State exists outside this Society. Persons abound who see and deplore the evils of the present want

of system, but they lack the full information, and especially do they lack concurrent action; and it is believed that the establishment of auxiliary societies throughout the State would produce the ends proposed, viz., properly constructed prisons, the establishment and maintenance of proper discipline; and the whole co-operative and correspondent, each with the other, till the system work, with regard to the government, as perfectly in Pennsylvania as it does in Great Britain, and much more effective in the interest of humanity and virtue. We have little to change, excepting the structures of our prisons, and the consequent classification and treatment of prisoners; little to unlearn in their management; we are not wedded to any past theory. It is generally admitted, that much of what this Society condemns is wrong; the only doubt, or supposed difficulty, is how it can be remedied. That doubt and that difficulty will be removed when auxiliary Societies shall be established to correct and embody public sentiment, and when the parent Society, through its branches, shall be allowed to bring its moral action into co-operation with the physical efforts of the Commonwealth, to alleviate the miseries of public prisons.

COMPENSATION TO PRISONERS FOR OVER-WORK.

Among the inquiries instituted by the Society this year, was one that related to the earnings of convicts in the Eastern Penitentiary, which arose out of a complaint made by a United States prisoner, who had received, as he thought, less for over-work than was in reality due to him. The character of the prisoner, or the title of the court by which he was sentenced, had nothing to do with the character of the claim, or the interest which the Society felt and would manifest in his behalf. He was a prisoner, and as such, whether in the County Jail or the State Penitentiary; whether sentenced by a Police Magistrate, or by a Judge of the Court of the United States, there could be nothing in his case to alienate him from our sympathies, or deprive him of the benefit of our interference in his behalf.

A committee was instructed to present the case of the complainant to the proper authorities of the Penitentiary, and to ascertain, in the first place, on what principle the over-work of prisoners was estimated, and to make especial reference to the case of the United States prisoner, which had suggested the investigation. It need scarcely be said that these inquiries were to be made with that friendly feeling and high respect which have marked the intercourse of the Society with the authorities of the Eastern Penitentiary, and that the questions were answered with the freedom and feeling of those who have an established, well devised plan of action, and are conscious of an adherence to that plan in all its execution; and the friendly spirit of the Committee of this Society was reciprocated by those to whom the appeal was made.

As settling a question about which some doubt existed, and especially as giving information that must be valuable to many, and interesting to all, the report of the Chairman of the Committee on the Penitentiary is subjoined.

TO THE ACTING COMMITTEE, &c.

As Chairman of the Visiting Committee of the Eastern State Penitentiary, I have been requested to make some inquiry into the manner of determining the value of the work done by the prisoners, and the allowance to be made to them for "over-work." The inquiry has been made accordingly, and the following may be given as the result:—

In the first place, it is an important fact, that the law of the State only directs that convicts shall be sentenced to "hard labor," leaving the *manner* of executing the sentence to the Inspectors and Wardens, or those having the immediate control of the Jails and Penitentiaries. There is no provision for any compensation to the prisoners for this labor; the primary, and probably the sole purposes for which it was made a part of the sentences, being to enforce it as a salutary part of the prison discipline, and also as a means of compelling the prisoners to contribute something towards the expense of their maintenance; consequently, any allowance made to them for over-work is altogether a gratuity, which they have no right to claim.

In the exercise of the discretion vested in the Inspectors and Warden of the Penitentiary, they judged that the introduction of rewards to the prisoners for industry would have a salutary tendency in several directions, and they therefore allotted to each of them, a certain quantity of such kind of work as should be given him, to be performed in a day, or a month, to pay for his keep. This is sometimes called "the task," and is so moderate, that with ordinary skill and application, it can be accomplished with ease. Such a money valuation is affixed to this work, as will admit of the Institution obtaining from their outside customers a small advance, to provide tools, working materials, &c. The prisoner is expected, at the price affixed, to earn for the Institution from twenty to twenty-five cents per day. No penalty, however, is visited on him for a failure, unless it is the result of culpable sloathfulness or insubordination. Every thing done beyond this allotted task, is credited to the prisoner as "over-work," at the same rate affixed to the "task," half of it for the use of the County, and the other half for his own use, to be paid to him at the expiration of his term; or portions of it, during his imprisonment, are applied, at his request, to the purchase of books, or, perhaps, a carpet for the floor of his cell, or some other little comforts beyond the prison allowance which the authorities may permit him to be supplied with, or remitted to his family.

Under this system, many of the convicts, on the well known and generally acknowledged principle, that "the hope of reward sweetens labor," are stimulated to so apply themselves, that they not only fully do what is claimed of them by the Penitentiary, (and which, without this encouragement, would often fail to be performed,) but they sometimes accumulate the very handsome sum of several hundred dollars against their discharge. One of them recently earned \$14.31 *for his own use* in one month—equal to \$171.72 per annum—and remarked that with a full supply of materials, he would have been able to have doubled his earnings. The system, indeed, works admirably, and its influences are salutary in several respects. The interests of the Institution are advanced by it, and the present comfort of those in confinement is promoted, and the susceptibility of their minds to the favorable action of reformatory influences is increased by having their time occupied by what they feel to be profitable employment. Also, without having the character of compulsory labor, it trains them to habits of industry, and practically convinces them of the important truth, that labor is a thing of real value. These habits, and this conviction, will be of great value to them when they again enter into the world, and the money they take with them will be an important aid in starting them afresh in the business of life.

In allotting the tasks, if any of the prisoners appear to be disheartened under an apprehension that they are greater than they can accomplish, and therefore think it useless to attempt it, the Warden reduces them, and thus leads them on gradually, and the result fully proves that a greater amount of work is actually obtained from them under this system, than would be by the more exacting plan.

The law and rules in these respects, as applied to United States prisoners, having also been under discussion in our Society, special information has been desired on that branch of the subject. It being understood that the General Government pays for their board, doubts have been expressed whether they are bound to labor at all; and if they do, it has been suggested that they should receive a credit for the *whole* value of their work. The first branch of the question is answered and settled by the fact, that they are sentenced to under go imprisonment for a certain term, *in conformity with our State Laws*—that is, “at hard labor.” Next, as to compensation, their board being paid. It is true the United States pays for each of its prisoners \$2.50 per week, which is for board, clothing, fuel, medical attendance, and, indeed, all his ordinary wants, and is hardly half of the cost to the Commonwealth, of each of those in confinement. The Penitentiary was erected by the State of Pennsylvania, at a cost of about \$600,000, *for its own use*. The interest of this sum, and an annual appropriation made, to meet current expenses, such as salaries of officers, &c., amount together to about \$50,000 per annum, which, as the average number in confinement does not exceed 400, makes a yearly cost to each of, say \$125, *in addition to their board and incidentals*. It is fairly said, that, although we may be willing to submit to the loss on our own prisoners, it is but reasonable that we should be protected from it, when accommodating the General Government. The result is, that United States prisoners, as regards labor and compensation, are treated throughout in the same manner as our own.

The same principle, as to compensation for labor, though differing somewhat in its practical details, has been introduced into our County Prison, with very satisfactory results. Whether it has been adopted in our Western State Penitentiary at Pittsburgh, or not, we are not clearly informed; and we are not aware that it is to be found in any Jail or Penitentiary beyond the limits of our State. It is one of the advantages of the Pennsylvania Separate System of imprisonment that it better admits of such an arrangement, than where the prisoners are congregated together in the workshops.

E. H. BONSALL.

Philadelphia, 11th Mo. 19, 1863.

While on this subject, it is deemed advisable to present a statement of the plan for labor and extra work which is in operation at the County Prison at Moyamensing; premising, however, that the penal servitude in the County Prison is generally so much less than that in the Penitentiary, that it is found necessary in many particulars to accommodate the assignment of work to the *time* of the prisoner sentenced, as few who come into the prisons have regular occupations, and a six months’ sentence does not allow time enough to acquire any trade sufficiently to earn money thereby.

And it may be remarked here, that the civil war which has disturbed our country for more than two years, has cut off one of the most important branches of prison labor, viz., that of cotton weaving, by which hundreds of prisoners could pay all the expense resulting from their incarceration, and often take with them, at the termination of their sentence, more money than they would have *saved* from their earnings, had they been at large,

indulging in the evil habits of occasional excessive drinking, and suffering the consequent misery of that delirium which only the inebriate can know.

Cotton weaving, and the preparation of the yarn for the loom, which was once so important a branch of employment, has, as we have already stated, almost ceased to be carried on in this prison. The sound of the shuttle is now scarcely heard where, a few years ago, the continued rattle, in almost every cell, gave notice of profitable industry. It was the custom of the prison, at the time to which we refer, to assign to prisoners a certain fixed task, and to allow them a fair compensation for over-work, so that a good and industrious weaver generally earned for himself about twelve dollars a month. Of course, he made more for the prison. The return of peace, and the introduction of raw cotton, will, undoubtedly, revive the manufacturing in the prison, and enable many, who now have but small employment, to make their time and their punishment profitable.

The Cordwaining Department has been more active; and in that a different system of labor and compensation prevails.

Here the prisoner is charged two dollars and fifty cents (\$2.50) a week for his board, to be deducted from the compensation for work actually performed.

The prices allowed for good work are as follows:

For sewed boots,	45 cents per pair.
For pegged boots,	30 cents per pair.
For rogans sewed,	35 cents per pair.
For rogans pegged,	28 cents per pair.

To those who purchase these articles, the price seems low; yet the average clear profit to each prisoner is about ten dollars a month,—a sum which, under ordinary circumstances, he would scarcely exceed, if at full liberty, with some of those habits that attend the man who is the candidate for, or the graduate of, a prison. Some prisoners considerably exceed ten dollars a month: they are usually not only faster but better workmen.

But, as many of the prisoners are without any trade, (and perhaps they owe their imprisonment in part to a neglect of some one to give to them a means of acquiring an honest living,) it follows that some time is necessarily consumed in acquiring such a skill in shoemaking as may be turned to their profit in prison, especially when the sentence is not for a long time. But many, it is believed, have made such advance in the art, under personal instructions, as to place them in a position to do some part of the work of their trade, and thus by practice to perfect themselves in a respectable occupation. Too much importance can scarcely be attached to this result, even of a short imprisonment.

Attempts have been made to introduce some kinds of labor for the benefit of prisoners who had short terms of incarceration, or who seemed destitute of abilities to acquire a trade; but these efforts have not been so successful, and, in the present absence of cotton weaving, some of the convicts remain wholly or nearly unemployed.

In the Female Department there is no regular employment by which labor is compensated in money. The tedium of the cell is relieved by ordinary female work, such as making and mending the clothes of other convicts, and providing clothes for those who seem to require some addition to their clothing, when they leave at certain seasons. There is a considerable demand upon the peculiar talents of these prisoners, and it would seem that if only half the industry (with economy and temperance) were practised out of the prison which they manifest willingly in the cell, they would have no temptation to steal, or to covet their neighbor's goods, "nor anything that is their neighbor's." These females are, however, not dismissed from the prison without some consideration for their industry. They usually come in with very few clothes. They are dismissed with at least comfortable garments; and if their home is at a distance, means are supplied to reach it. In this matter, also, this Society assigns special duty to its Agent; and in many cases the poor creature who having tasted the pleasures of sound resolutions for the future, begins to feel the terrors of inability, on her departure from the prison, to escape the associations that led her there, is suddenly surprised with the gratifying information that she will be aided by the Society to leave the city, when she leaves the prison, and may abide in the cell, or in some institution or family, till she can be safely "*sent home*" at the Society's expense.

CORRESPONDENCE.

UNITED STATES.

We have received reports of various philanthropic societies in the States of Connecticut and Massachusetts. They have mostly in view objects similar to those of this Society: that is, the alleviation of public evils, by direct action upon the minds and consciences of those by whom those evils come.

Among these are the schools in Massachusetts for alleviating the condition of girls and of boys,—separate institutions, but working admirably in the fulfillment of the designs of the founders.

The Report of the Board of Trustees of the “State Reform Schools of Connecticut” is exceedingly interesting. These last seem, in design, to correspond very much with the “House of Refuge” in this city; and it is gratifying to notice that all of them appear to be in a flourishing condition.

There is one “Report” that specially arrested our attention,—that of the “Massachusetts State Agency for Aiding Discharged Convicts.” Here seems to be a true charity, not dependent, alone, on individual efforts and contributions. It appears, by the Report, that the amount expended by the “Agency,” on account of “the government of the State,” was \$1,656 32. That, of course, as the Agent says, “will meet the discharged convicts’ wants for a brief period.” If we had not extended our Report this year much beyond usual limits, we should feel disposed to copy most of the Report of this Charity into our own Annual Statement. The following, however, is too well put to be omitted:

“Society has a vital interest in a mission that induces the night-burglar to abandon his trade and allow men to sleep in safety, and that converts the felon’s tools into proper implements, and brings his mind and heart into a *willing* frame for *house-building* instead of *shop-lifting* and *house-breaking*. We approach an employer, and for *his safety* confide to him our knowledge of the past life and present state of the applicant, now penitent and resolved on reform. By awaking sympathy, we open a door to honest industry, which he enters, and is surrounded by shop mates, ignorant of his crime, ready to fellowship him without prejudice; so that, feeling safe from those taunts that would otherwise assail him, and which, surely, have no healing or strengthening power, he becomes inspired with hope, and courage to make self-reliant effort, trusting that, with the added blessing of Heaven, he will henceforward be an honest man.”

Many of the Reports which we have received are from State Prisons, Penitentiaries, &c. They, of course, are interesting for the statistics they contain, and will be acceptable to those who are directly interested in, and responsible for, the condition of penal institutions. But we feel naturally more interest in the progress of improvement in the care of the prisoner, than in the cost of his maintenance. It is gratifying to find that, in all these prisons, the voice of instruction is heard, and that, in addition to stated religious exercises, there is personal visitation, and this seems to be followed up by the established preacher or “moral instructor.”

The State “Schools” in Massachusetts for rearing, instructing, and reforming girls and boys, not only in separate buildings, but in separate parts of the State, appear to be doing immense good. The reports upon the conduct of many who have graduated from the Schools, show success; and some remarks intimate also, that the failure to reform all, has excited unwelcome criticism. We do not copy the reply: it is exactly what every “visitor” of this Society feels,—it is what the managers of the House of Refuge in this city would say. The largest anticipations of the self-sacrificing philanthropist are not to be realized. The true philosopher will appreciate the benefit to the individual and to society, resulting from a single reformation.

We have received the Eighteenth Annual Report of the Executive Committee of the Prison Association of New York. It is a clear, explicit statement of the doings of the Agent and Committees of the Association, and will be read with deep interest by those who have a sympathy with the unfortunate and a desire to assist into goodness those that have done wrong. The details of proceedings by the Agent are quite similar to those set forth by Mr. MULLIN, the Agent of our Society, and show a low condition of primary justice in New York, and a wretched state of the lower stratum of society in that city. Tyranny in the small landlords, utter debasement of the moral faculties in the multiplied liquor dealers, and a determination on all hands to do the worst by others and the best (according to their own estimate of good) to themselves, distinguish the condition and conduct of those who in New York live by fleecing the shorn and miserable, and making vice of every kind subservient to their plans of personal profit.

The Report to which we now refer, contains much that is usually presented in the Annual Report of the Inspectors of the Prison. The

statements, however, are interesting as showing the condition in New York of those affairs which occupy the attention of our own Society.

We notice one circumstance in the Report of the New York Society worthy of attention, viz., that the agents of that Society have used their influence with the courts to increase the severity of the sentence intended to be pronounced upon a convict. This was justified by a knowledge of the antecedents of the offender, and of the character of his mind. We are not aware that any interference exactly of that character is to be recorded of those who represent our Society; but we have occasion to believe that in one or two instances an opinion was given *against* a re-consideration of a sentence with a view of lessening its severity; and that opinion was accepted. There was more mercy in such a course than in shortening the term of imprisonment. In one instance, at least, the beneficial results are obvious.

GREAT BRITAIN AND IRELAND.

After this Annual Report was prepared and accepted by the “Acting Committee” of the Society, there were received from London several volumes of Parliamentary Reports on the condition of the various prisons in England and Ireland in 1862, and also a large folio volume containing “a Report of the Select Committee of the House of Lords on the Present State of Discipline in Gaols and Houses of Correction;” together with the proceedings of the Committees, Minutes of Evidence, and an Appendix for 1863. The “Reports” to which allusion is first made, are from the Inspector General of Prisons, and they refer to the condition and operation of all the prisons in each kingdom, and are followed by special Reports from each prison, separately made by the proper officers to the Inspector General. The minuteness of these Reports is truly wonderful. Every authorized movement in each prison is set forth, the discipline and dietetics explained in all their particulars, the accommodations of the inmates, the number of beds and blankets, and all the minutiae of their management. The exact cost of each branch of supplies is given, and the character and changes of food for each class.

We note too that in Ireland every prison is supplied with moral and religious teachers, of various denominations. Generally there are one clergyman of the Episcopal Church, one of the Presbyterian Church, and one of the Roman Catholic Church. These seem to devote their services to the moral and religious instruction of those who may, by denominational distinction, belong to their ministry, and each makes an annual report of the moral condition of his charge, and such remarks upon the condition of affairs in the prison as may be the result of his observation. He also gives the number of his visits during the year. They are all salaried officers; each receives from \$150 to \$200 per annum.

The details of the exact condition and number of every article supplied to the prison, show the care that is bestowed upon the stores of the prison; and the tables of the number, condition and offences of the prisoners are

instructive to those who would be familiar with prison management, with its cost, and other requirements.

In every part of these Reports is found the reiterated opinion of the visiting officer, (whose experience of many years entitles his views to the greatest respect,) that no good moral results are to be expected from social confinement; nothing but the separate system can be relied on to give moral efficacy to imprisonment for crime.

It is noticed too, that in Great Britain and Ireland, as in this city, and, we suppose, in most of the large cities of the Union, there is a class of men and women, and especially of the latter, that seem to divide their time between the prison cells, and places of debauchery and preparation for imprisonment. In the Report for the prison in the county of the town of Drogheda, (the district containing eighteen thousand inhabitants,) there are females who are constant “recurrents;” and it is said that, out of those committed during the year 1862, one had been previously in custody ninety-two times, and the rest from twenty-eight to forty-nine times.

Separate Reports are made upon the condition of convict prisons, both in Great Britain and Ireland.

In the Report for common prisons of Great Britain, there is rather less perspicacity, and there seems less attention paid to the details of the institutions. The moral and religious instruction is ordinarily committed to a clergyman of the Established Church; but in most of the Reports it is stated that Dissenting and Catholic prisoners may have the services of clergymen of their own denomination, if they desire it. In Cardiganshire, (Wales,) it is stated, “every facility is given to protestant dissenters for seeing ministers of their several persuasions, but Roman Catholics are unknown in the prison.” Whether Catholics are not admitted, or none are sentenced to its cells, or whether the existence of such a denomination is ignored, or whether none are found in that district, it is not stated.

The county and borough jails throughout England seem not to be in the best condition to produce moral improvement.

We may remark here, that the Episcopal Church, being the established denomination in England and Wales, we find all the prisons supplied with a clergyman of that church. So far as that goes, it is laudable, and it may be

added, as an additional ground for commendation, that Dissenting and Roman Catholic Clergymen are admitted, when their service is required by prisoners of their denomination. We are not willing to criticise closely, but it would seem that, as visiting clergymen are paid by the public money, and as their office is to awaken as well as to satisfy an appetite for moral and religious instruction, it is scarcely within the limits of Christian charity to make no provision to call dissenters and other prisoners to a sense of duty. And this is the more evident, from the fact that, in Ireland, where only a very small minority are of the Established Church, prisoners of that denomination are supplied with a special religious teacher, as well as those of the other two great divisions. There is, however, in some of the English prisons, a “lecturer, who instructs his hearers not only in moral, but in physical sciences.”

It is much however to know that the great truths of religion are taught in the public prisons of England, and it is more to know that there are many willing learners, who, without this means of improvement, would remain in ignorance, if not of religious truths, at least of the necessity and advantage of receiving and practising them.

The Report of the Directors of the Convict Prisons of Ireland, is interesting to those who feel desirous, in this country, to do all the good possible to convicts. The very great proportion of inhabitants of Ireland who are not of the “Established Church,” makes it necessary to give officially, religious and moral instruction by clergymen of different denominations, and hence we find that the development of the true state of the prisons, includes the Annual Reports of the Clergy of the Episcopal and the Roman Catholic Churches, and of that denomination of Dissenters which has probably the largest number in the prison, or which can most easily supply from the neighborhood, a clergyman to lead religious service. And we learn from the Reports of the different clergy, that religious service, according to the requirements of the several denominations represented by the clergymen, are held twice on every Sunday and recognized religious holiday, and that the usual instruction in doctrine and morals is also given to classes; all, of course, without interference with each other.

In many respects these Parliamentary Reports may be regarded as of more consequence to Boards of Prison Inspectors, than to the “Society for Alleviating the Miseries of Public Prisons,” as they set forth the economy of

the institutions, the discipline, the means of comfort, and the character of employment, as well as the results of all these, and the exact cost; and thus they may become useful as indicative of what Boards of Inspectors should carefully shun or promptly adopt, with such modifications and adaptations as difference of circumstances renders necessary.

But, in Great Britain and Ireland, much of the labor assumed by the Philadelphia “Society for Alleviating the Miseries of Public Prisons,” is undertaken by the Government; and the closeness of the investigation of their affairs, and the fulness of the Reports, are consequent upon the interest which philanthropic individuals have awakened throughout the country, and the action which has been secured by both Houses of Parliament. The great volume of Reports of the action of “a committee of the House of Lords” is of deep interest, even in this country, as showing not merely the condition of certain great prisons, but as illustrating, especially, the effect of different systems of treatment and labor. The elevated rank of the persons who composed the commission of inquiry, shows the importance which the House of Lords attached to the subject; and the constancy of attendance, and the searching character of questions put to those under examination, show the fidelity of the distinguished noblemen to the interests submitted to their care.^[2]

2. The select committee consisted of the Duke of Marlborough, Marquis of Salisbury, Lord Steward, Earl of Carnarvon, (who was elected Lord President,) Earl of Malmsebury, Earl of Romney, Earl Cathcart, Earl of Ducie, Earl of Dudley, Viscount Eversley, Lord Wodehouse, Lord Lyvedon, Duke of Richmond, Lord Wensleydale.

Of the five hundred and twelve folio pages of these Reports, there is not one that is without interest to every active member of this Society. There are 5,337 questions propounded by the various members of the commission, and answers rendered by those who have been in the administration of the prisons, or who had been exercising the duties of visitors, inspectors, physicians, &c., of the several prisons; and those answers present a most minute exhibit of the exact state of the prisons, and all that relates to their administration.

In some of the prisons, we find that there is a physician employed at *seventy-five* dollars a year, and that he visits twice a week.

So far as we have examined the Dietary of the different prisons in Great Britain and Ireland, we find some meals enriched with meat, in England,

but none, as far as we discover, in Ireland. Prisoners are weighed, and their provisions augmented or improved, or diminished in quantity and quality, according as their weight increases or decreases. And the kind of labor is changed to suit their health and weight. They must require much personal supervision. Ale, wine and brandy are used in the prisons, when the prisoner is under medical treatment; and it would seem, from some Reports, that medical treatment was more frequently called for in the prisons where such indulgences are prescribed. It may be remarked here, also, that consideration is given to the previous *habits*, and pursuits of prisoners, when they enter, and the diet, with regard to meat and ale, somewhat modified by the amount which had been used before conviction.

The Committee are decided in their views of the necessity of uniformity in discipline, dress and food, in the prisons of Great Britain; and as, geographically considered, the kingdom is small, with little variety of climate or produce, such a desideratum may be easily supplied. We cannot hope for anything like an attempt at uniformity in our Federal Government; but there appears no immovable obstacle to a uniform system of prison discipline and practice in this State. But that cannot be hoped for, till there is a general knowledge of its wants. This will probably be the result of the establishment generally in this State of County Societies, auxiliary to the Philadelphia Society for Alleviating the Miseries of Public Prisons.

One spirit pervades all the Reports of the Noble Committee, and it is aroused and sustained by the answers to questions propounded by them to the Inspectors and other officers appointed to look after the economy and discipline of the prisons of all kinds throughout the kingdom, and that is *the entire necessity of the separate confinement of the convicts*, and the full belief that the same kind of treatment would be beneficial, so far as time would permit, for every class of prisoners. They distinguish between solitary and separate confinement. The former is recommended as a prison punishment,—the latter as a system of regular treatment. On this subject the Committee say, as a result of the testimony taken before them: “Where separate confinement exists, it exercises both a reformatory and deterrent effect. The committee are of opinion that the principle of separation should be made to pervade the entire system of the prison.” And while they do not admit that the adoption of the system need cause any relaxation of the rule in school or chapel, and at exercise, they intimate that the “*cellular*

instruction” (as they denominate what we have in our Report spoken of as religious and moral instruction in and at the door of the cells) should not be relaxed.

It will be understood that the attempts at separate confinement in England have, in some places, been made by an effort to accommodate the old borough and county prisons to the new system. Poor as the chance of success might appear, it is worthy of remark, that the results satisfy both the Inspectors and the Noble Committee, that it is the true system of penal and reformatory imprisonment. On that subject the Committee say they “consider that the system generally known as the separate system must now be accepted as the foundation of prison discipline, and that its rigid maintenance is a vital principle in the efficiency of county and borough jails.”

This sentiment pervades the whole Report, and is suggested and sustained by the testimony of all those who were under examination before the Committee.

It is a subject of regret that we cannot copy at length the testimony of some of the witnesses called before the Committee of the House of Lords: we however find one question, with an answer thereto, that is too direct to be omitted.

1757. Question by the *Earl of Carnarvon*.

You have given the Committee one instance, and we have heard from another witness that the reputation of Leicester Gaol has a deterring effect; can you give the Committee any reason why you think it is more deterring than some other prisons?

Answer by *William Musson, Esq.*, Governor of Leicester Gaol.

I think that our system of discipline is very strict; we never allow the separate system to be broken through on any consideration; the prisoners are in separate cells; they are exercised in separate yards, and they have separate stalls at Chapel; and I may say that when they are taken out to be tried in Court, they go in separate partitions in the wagon, and are arraigned separately.

1758. By *Earl of Dudley*. Is not the separation relaxed when they are with the schoolmaster in class?

No; they are separated then.

1759. Do they not sit at the same table?

No; they are in the Chapel in separate stalls; we use the Chapel as a school-room.

1785. *Earl of Carnarvon*. In your opinion, the advantage of separation outweighs any inconveniences which may result from it?

Yes; I think so.

1786. *Lord Wodehouse*. Do you ever find that prisoners when confined for long periods in separate cells, suffer at all mentally from the separation?

There is a great variety of minds, and it does not influence all alike.

In another part of our Report for this year, it has been stated that much good, it is believed, has been done to individuals, by meeting the prisoners on their arrival in the van, and releasing those committed for the first time, provided that it is apparent that they have not been frequent offenders, and have not chosen the path of vice; and it is stated that by this course the self-respect of many young persons has been saved, and they have been snatched from a vicious course, which would scarcely have been avoided had they been confined with old offenders. And when the power to release did not rest with the Inspectors, the Agent was at once despatched to procure the release of the committed person; and that failing, care has been used to place the novices in separate cells, and provide them with advice, books, and some little work. On this subject we have the opinions of the Inspectors of Prisons for the North and Middle districts of England.

2156. By the *Duke of Marlborough*. You stated that you did not think short sentences of much avail in effecting reformation upon a prisoner; but do you not think that short punishments may be a deterrent?

No; I think that a man who is sent to prison for seven days or twenty days or a month, becomes marked, and he is not in prison long enough to enable him to exercise an influence for good over him.

2157. Take the case of a man who has not been accustomed to vice or crime, and who finds himself in prison for a month for an offence into which he has been hurried, and finds the prison to be a very unpleasant thing, and the discipline to be very severe, and that he is subjected to a great many things which he did not expect before he entered the prison, do you not think that the recollection of that month's confinement may have a deterring effect upon that man in future?

I think that to a man of the character which your Grace has described, a month's imprisonment would do more harm than good. If that man escaped the taint of a prison, and was bound over under certain securities, he would be more likely to turn out well than if he had

been subject to the discipline of the prison for months; it is too short a period in itself to have any deterring effect on him.

In another part of the Report of this Committee of the House of Lords we have a statement of what is understood by separate confinement.

2662. Separate from what?

Man from man; they never see each other to know each other or to speak to each other.

2663. By the separate system you only mean separation of prisoner from prisoner?

Just so.

2664. Not the secluded system in which a man is shut up entirely?

No; quite the contrary.

2665. I ask the question in order that your answer may be recorded here, for this simple reason, that a great many people have an idea that the separate system is simply a secluding of the prisoners entirely; whereas, the separate system is only, as you have stated in your answer, the separation of prisoner from prisoner?

Yes; from all evil communications.

In reply to a remark by the *Earl of Dudley*, that the prisoners daily saw several officers of the prison, and occasionally others, it is said,

“Just so. The *solitary* system does not exist in England.”

We are struck with the statement of general health in some of the prisons in England; for example the Bristol Gaol. T. A. Garden, Esq., Governor of that prison, in his testimony before the Committee of the House of Lords, says: “During the time that I have been Governor—twenty-six years—we have never lost a female prisoner; and we do not lose more than one male prisoner in twelve months. Those that we have lost came to us, perhaps, in the last stage of consumption. I do not know one single case that has been taken ill on the premises and died. The average number of prisoners is one hundred and sixty.”

The whole of the Parliamentary Reports, as has already been stated, came to hand after the preparation of this Annual Report, and its submission to, and acceptance by, the Acting Committee of the Society; so that it was inconvenient to swell the publication by extracts from the British Report,

even where matters of interest were explained at length; and to supply as far as possible the want of those extracts, digests of some of the Report and statements have been made, which, with all deference to the economy of space, must have swelled the division of the report in which they should appear much beyond what may be regarded as a fair proportion. It will be well to recollect when we read the strong testimony which the Governors and Inspectors of gaols in Great Britain bear to the superior efficacy of the system of separate confinement; that as yet in many of these gaols they are working with old edifices only partially adapted to the new system, and they are in a state of transition from the old system of physical to that of moral discipline. They see and feel the means of good which are almost within their reach, but they have to approach them slowly, respecting the established opinions of a portion of the community, while they follow as far as possible, the suggestions of the better informed. They will soon make the public sentiment by which they will be sustained in their work of tempering justice with mercy, and rendering punishment for offences the means of reforming the offender.

NOTICE OF DECEASED ACTIVE MEMBERS.

In treating of what this Society has done, we are compelled to pause and record a part of what it has been called to suffer in the loss of its active members in the past year.

REV. C. R. DEMMÉ.

We have to deplore the death of the Rev. C. R. Demmé, D. D., Pastor of the German Church in north Fourth Street, who for many years made the Eastern Penitentiary the scene of his most welcome and profitable labors. His great desire was to do good to his fellow man; and Providence that lighted up that wish in his heart, blessed him with a sound judgment, as to the choice of objects on which his gifts and acquirements would be best exercised, and the selection of time and means for his ministration. He knew how repulsive usually is the convict's cell to those of his vocation; and he felt also how important to those who would be useful there, is a knowledge of modern languages; and especially did he resolve to devote himself to those of his own country, (Germany,) whom he could approach by many avenues which love of the "Father land" opens to the heart. And many who heard his kind monitions, lived to bless his benevolence. He was a man of steady and well regulated zeal, devoid of ostentation; practical in all his plans, and eminently useful in his labor in concurrence with this Society.

JACOB T. BUNTING.

In the month of December, Jacob T. Bunting, an old and active member of this Society, died. He was known to his acquaintances as one that had at heart the good of his fellow men; and in this Society he was recognized as a hearty co-operator in the good work of alleviating the miseries of prisons. Earnest in his efforts to discharge his duties at the cells of the prisoners; he sat in council with us, awaiting rather the judgment of others, than attempting to enforce his own opinions, yet influencing by his experience, and conciliating by his courteous deference. The Society feels and mourns the loss of such a member. Mr. Bunting was in his seventy-first year.

TOWNSEND SHARPLESS.

On Wednesday, the 30th of December, died Townsend Sharpless, one of the Vice-Presidents of this Society.

There are men who seem formed to discharge a certain class of duties, beyond which they lack zeal and fail of efficiency. But Townsend Sharpless seemed to fulfil the injunction of Scripture, "Whatsoever thy hand findeth to do, do with thy might." In business or rational recreation, in works of general benevolence, in the councils and labor of this Society, he was constant, zealous and successful. No half-way measures satisfied his plans, or gratified his wishes. He satisfied himself first that the work was one of benevolence, and then he made it a duty, and discharged it. In the walks of business there was no man who seemed better to understand the whole routine of trade, and few were ever more devoted, or more successful. As a philanthropist the same zeal, the same method secured equal success to his labors. And warm-hearted in his friendship, his social relations were of the most pleasing and gratifying kind.

The Society for Alleviating the Miseries of Public Prisons, then, in referring to the death of such a member, feel that they have lost in the demise of Townsend Sharpless, a valued member, a respected Vice-President, an exemplary merchant, a useful citizen, and a practical philanthropist.

As the Scriptures inform us that it is "well with the righteous," we have only to mourn in the death of our several valued colleagues, our personal deprivations, and the loss which the cause of humanity sustains in the withdrawal from its labors of men whose experience gave weight to their counsel, and efficiency to their labors. The starred names of our muster-roll show how much of purity, piety, zeal and judgment have been vouchsafed to this Society. The cause in which they labored is transmitted to our hands. In addition to their motive to stimulate us, we have their bright examples by which to direct our course and regulate our conduct.

CONCLUSION.

The Society looks back with much gratification upon its labors. The existing active members feel how much they owe to the philanthropic efforts of the founders of the Association, and to those, who, having exerted themselves with corresponding zeal in the good cause, have bequeathed to men of this day the *improved* work, and the augmented duties. Every point gained develops the resources of humanity, while it presents new objects for its exercise. How prisons are conducted, and how prisoners are treated, where there is no voluntary organization to alleviate their suffering, history and the report of travelers tell. Undoubtedly religion meliorates the condition of the incarcerated, whether his offence be vice or crime; but religion supplies itself with means and instruments for its holy work, and we look for good results only where there have been corresponding means. To find the effects of unalleviated punishment upon tried offenders, is not necessary to look far back into ages which the world calls “dark,” because light was less diffused than at present; it is only to seek the nation or community where arbitrary power not only inflicts the wrong of too severe punishment, but, by its terrors, prevents the suggestion and adoption of means by the humane which may lessen the effect of the severity, by keeping between the sufferer and the world a connection of feeling and sympathy that will lead him to resolve some good when the punishment for the bad shall have been all inflicted, which shall make him feel, indeed, that this will be a use to him of virtue, and that he may hereafter have a reward in the recognition of its existence in him by the society to which he may be spared. Seek the government that understands by criminal law only the punishment of the guilty, and we shall see that authority seizes the violator of its enactments or decrees, and treats him as if all of humanity had perished in him with the conception of his crime, and, dragging him from the decencies, the enjoyments and the hopes of society, it

Chains him, and tasks him, and exacts his sweat
With stripes, that mercy, with a bleeding heart,
Weeps when she sees inflicted on a beast.

The difference between that mode of dealing with the convict and the lesser evil, that of allowing him to perish in inactivity, and acquire strength in bad resolves, and instruction for future crimes, is what policy and unaided humanity have wrought out of the condition of the offender. The difference between the latter condition and that of the inmates of the Philadelphia County Prison, and especially the Eastern Penitentiary, is what results from the labor of the Philadelphia Society for Alleviating the Miseries of Prisons. It is something, in the first contrast, that the convict has a prison; it is more, in the latter, that the prison is made a school of physical and moral reform.

To have been instrumental in working out such a difference is an occasion for felicitation and thankfulness, even though there be felt a consciousness that with such objects so well defined, and means so complete, much less has been done to alleviate the miseries of prisons, and arouse the attention of society to the good work, than might have been hoped for. But a work of this kind once begun, must, of course, go on. The hands that are now stretched forth may lose their power, but others will be employed; and year by year, as we have seen, so shall we see, volunteers dedicating themselves to a duty which, though painful and often repulsive, has with it the promise of reward from Him who by precept and example devolved it upon us.

The important work of convincing society that it has a greater interest in the reformation of a public offender, than in his punishment, or that it is its true interest to make his punishment a means of his reformation, must not be allowed to fail for want of efforts or advocacy. The great work of demonstrating the truth that crimes are multiplied by the companionship of the culpable, must be forwarded. The construction of prisons, and the administration of their affairs, must still be carefully considered as one of the great objects, a leading object of this Society, and a means of alleviating existing miseries.

The discipline, the labor, the compensation of prisoners, must have constant attention; and the results of investigations and experiments be made public, for the promotion of the great object of this Society.

The great work of establishing auxiliaries to the Society must be carried forward with prudent zeal, so that, by co-operation, the labors of all who unite with us in objects and views, may be more effective; and, indeed, that we may by argument and illustration, increase the number of those who unite with us in object and views.

We must augment our correspondence also, that we may fully understand the plans and labours of philanthropists in other States and other nations, and make them comprehend our own views, and the means by which we seek to accomplish our object.

All these considerations, and others that seem to regard the physical condition of prisoners, must continue to occupy the attention of our members, and chiefly because, through those physical aids, we are to reach his moral life. But with all these efforts towards the instruments of good, we must continue, with unwavering, with augmented exertion, our endeavors to reach *directly* the hearts and consciences of those whom we would benefit. To do this effectively, we must have patience, as well as good will,—we must *endure*, as well as *do*: we must *learn* the great lesson of *teachers*, before we undertake the business of instruction; we must feel it the great duty to ourselves, and our mission, to “bear and forbear.” We must learn to labor and to wait,—to bestow our toil this day and every day, but to look at a distance for the reward of our efforts, in the fixed reformation of its objects, and to be “instant in season and out of season,” to admonish, advise, induce and encourage. The experience of those who have spent years at the doors of the prison cells, is not that of multiplied fruits. The value of a single soul must be fully appreciated, that the one redeemed from vice may be regarded as a consolation for the hundreds that make no improvement from efforts in their behalf. In short, we must find our pleasure in the discharge of a duty, and leave to Him, whose commands we obey, to give the increase for which we labor.

We may spend days and weeks, as indeed many have spent months, in seeking to awaken the conscience of the hardened offender to the evils of his course, and arousing him to the danger of their tendencies; and when the object of this solicitude shall have passed from our care, and ceased to hear our lessons, we may hear of him in the midst of debauchery and villainies, apparently ten-fold more a child of the devil than when we sought to soften his heart, and succeeded in raising his tears in the criminal cell. This is the

experience of all who undertake to reclaim those who are hardened in crime or steeped in vice. But are we, on that account, to relinquish our labors or to forego hope? Are we to say that this backsliding is the last of the seventy times seven, and therefore we may stand excused from further effort? That very backsliding ought to be expected. The return of the offender to his offence is in the course of the timid, half-repentant wrong-doer, we know. We see it in regard to amendments of life that have relation to private interests and individual character. We must look for it in those who have for a long time cast off respect for social proprieties and wholesome regard to statute laws. The probability that few to whom we address ourselves in the cells of the incarcerated will give much heed to our exhortations, and their liability to return to their ways of sin and shame, notwithstanding their apparent desire to accept our ministration and profit by the means of improvement which we present, are known to us all before we enter upon the service. We accept the appointment with a knowledge of the difficulties it presents. We receive the mission to those whom the schoolmaster and the preacher have failed to influence to good; and we are to thank God for even the small returns from our laborious gleanings, rather than to arraign his providence or dishonor our pursuit by complaining of small returns.

Charities have their grades, and they are entitled to commendation not always for the amount of benefit they have conferred, or the number that they have assisted, but rather from a consideration of the difficulties they encounter, and the spirit in which they are conducted.

Colleges and schools have received and instructed the sound minded at all times, and the asylums for the insane and the orphan have been working wonderful good among the mentally afflicted and the fatherless children; but it was left for the present age to see men of character and science stooping to the wants of the idiot, and by painful, protracted labor and unheard of patience, irritate into some kind of life, the low faculties of the mentally infirm, and call into usefulness and love, those who had been condemned, by universal judgment, to helpless idiocy. And if this is going on in our midst,—if the wretched, drivelling child, whose mind and body seems to be given over to utter helplessness, can be and is called into profitable exercise and lofty accountability, shall we hesitate to dedicate some portion of our time to the reformation and right direction of those whose physical powers are all that vice has left them, or whose sense of

responsibility to God and man is only clouded by the indulgence of vicious appetites, or deadened by a repetition of those enormities which make a sense of responsibility a curse? It is most true, as is often asserted by those who have some experience of the faithlessness of a prisoner's promises, that few who seem to listen with respect to moral instruction at the doors of their cells, ever carry into execution their solemn promises. The state which made them contemplate and promise reformation is changed, and they seem to feel released from their pledges. They have before them a sense of the degradation to which their vices have reduced them, and they shrink from a contemplation of a perpetuation of that degradation. They feel that they stand in the presence of those whose superior moral or social position is only the result of superior virtue, and they think it easy to check the appetites whose indulgence is vice, when the reward is near. They promise, and they go forth into a world that remembers only their follies or their crimes. The means of gratifying their appetites are available, virtue is difficult, because the rewards are postponed; and while they are in probation with their best friends, and under condemnation among the many, they have fewer present inducements to virtue than they had thought, and so they fall back into the very faults which had made them prisoners before, and which send them again to the cells with drunkards and vagrants, who harden them into shamelessness.

But are we to forbear to seek to reform because they have failed to keep their promise? Are we to cease to advise kindly, and warn earnestly because they have again yielded to their degraded and vitiated taste? Shall we say that this man or that woman has shown himself or herself irreclaimable, and therefore we will spend no more time, no more kindness, on such an one? Who shall say that all is lost while life remains? Who shall say that the seeds of moral truth are dead in his heart because they have not yet germinated? How long vitality remains in vegetable seeds we all know. Shall there be less vitality in the seeds of moral truth? The wild grass grows, the useless weed, or the poisonous plant springs up into life, and seems to invoke and warrant entire condemnation of the soil; but let these be cut down, and how often come forth the sweet herb and the profitable grass, whose seeds have lain dormant while those profitless or poisonous productions were covering the surface. At some later day, in some season of great emergency, some hour of bitter trial, truths that seemed to have fallen profitless on the heart of the miserable prisoner, may come forth and bless

with usefulness and peace the few closing days of a life that has been heretofore dedicated to folly and vice. Let us, then, sow the seeds by all waters; let us not withhold, morning or evening, our hands; and, when we have reason to believe that these seeds have found a place in the consenting mind of the listener, let us water them with the refreshing influences of our experience, and warm them into growth by that affection which is the basis of true philanthropy. It is thus we may alleviate the miseries of prisons, and make the criminal's cell the vestibule to the temple of virtue and piety.

In conclusion, let it be repeated with emphasis, that we are not to be driven from our efforts at personal reformation, by any failure of the prisoner to justify, in liberty, the hopes which he had warranted while in confinement. As often as he returns to his cell, he should return to our care,—our instruction. The last resolve may be permanent. The last “repentance may be unto life, never to be repented of.” And we shall have occasion, perhaps, in our observations upon life, to conclude that the best of mankind will find the fruition of their highest hopes less in the amount of their innocence than in the frequency of their repentance.

JAMES J. BARCLAY,

President.

JOHN J. LYTLE, *Secretary.*

PHILADELPHIA, JANUARY 1864.

LIFE MEMBERS.

ON PAYMENT OF TWENTY DOLLARS AND UPWARDS.

Ashmead, H. B.

Barclay, James J.

Bache, Franklin, M. D.

Bonsall, Edward H.

Besson, Charles A.

Cope, Caleb

Ellis, Charles

Fotteral, Stephen G.

Foulke, William P.

Hacker, Jeremiah

Horton, John

Hollingsworth, Thomas G.

Knight, Reeve L.

Leaming, J. Fisher

Love, Alfred H.

Longstreth, William W.

Marshall, Richard M.

Ogden, John M.

Perot, Joseph

Perkins, Samuel H.

Parrish, Dillwyn

Powers, Thomas H.

Potter, Thomas

Pennock, George

Sharpless, Charles L.

Sharpless, Samuel J.

Steedman, Miss Rosa

Turnpenny, Joseph C.
Townsend, Samuel

Whelen, E. S.
Willits, A. A.
Weightman, William
Williams, Henry J.
Waln, S. Morris

Yarnall, Charles
Yarnall, Benjamin H.

MEMBERS.

Armstrong, William, M. D.
Anderson, V. William
Atmore, Frederick B.
Ash, Joshua P.

Brown, John A.
Brown, Moses
Brown, Thomas Wistar
Brown, Abraham C.
Brown, N. B.
Brown, David S.
Brown, Joseph D.
Brown, Mary D.
Bell, John, M. D.
Biddle, William
Biddle, John
Barton, Isaac
Burgin, George H., M. D.
Bohlen, John
Binney, Horace, Jr.
Bayard, James
Beesley, T. E., M. D.
Beesley, B. Wistar
Bowen, William E.
Bettle, Samuel
Bettle, William
Baldwin, Matthias W.
Barcroft, Stacy B.
Baily, Joel J.
Burr, William H.
Boardman, H. A.
Bacon, Richard W.
Bacon, Josiah
Brock, Jonathan
Barclay, Andrew C.
Brooke, Stephen H.
Baines, Edward
Risnham, Samuel

Stephens, Samuel
Broadbent, S.
Brant, Josiah
Brooks, Henry
Beckwith, J. H., Rev.

Corse, J. M., M. D.
Cope, Alfred
Cope, M. C.
Cope, Henry
Cope, Francis R.
Cope, Thomas P.
Colwell, Stephen
Caldwell, James E.
Caldwell, William Warner
Cresson, John C.
Claghorn, John W.
Chandler, Joseph R.
Carter, John
Carter, John E.
Campbell, James R.
Comegys, B. B.
Childs, George W.
Child, H. T., M. D.
Chance, Jeremiah C.
Coates, Benjamin
Chamberlain, Lloyd
Conrad, James M.
Cooke, Jay
Collier, Daniel L.
Comly, Franklin A.
Cope, Herman
Collins, Jos. H.
Corlies, Samuel Fisher
Campbell, Edward S.
Crenshaw, Edmund A.

Ducachet, Henry W., D. D.
Dawson, Mordecai I.

Dawson, Mordecai L.
Dorsey, William
Dutilh, E. G.
Ditzler, William U.
Dreer, Ferdinand J.
Dickinson, Mahlon H.
Davis, R. C.
Derbyshire, Alexander J.
Derbyshire, John
Duane, William

Earp, Thomas
Evans, Charles, M. D.
Evans, William, Jr.
Evans, Robert E.
Evans, J. Wistar
Erringer, J. L.
Edwards, William L.
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Elkinton, George M.
Ellison, John B.
Emlen, Samuel
Eyre, William
Erety, George

Farnum, John
Fraley, Frederick
Fullerton, Alex.
Farr, John C.
Frazier, John F.
Ford, William
Ford, John M.
Furness, William H.
Field, Charles J.
Fox, Henry C.
Franciscus, Albert H.
Funk, Charles W.

Garnett, Thomas C.

Garrett, Thomas C.
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Gilpin, John F.
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Gummere, Charles J.

Hunt, Uriah
Hockley, John
Holloway, John S.
Husband, Thomas J.
Hughes, Joseph B.
Homer, Henry
Homer, Benjamin
Hand, James C.
Hazeltine, John
Hastings, Matthew
Huston, Samuel
Hacker, Morris
Hacker, William
Hunt, William, M. D.
Hurley, Aaron A.
Harbert, Charles
Hunn, Ezekiel
Hunneker, John
Henderson, Robert

Ingersoll, Joseph R.
Ingram, William
Iungerich, Lewis

Jackson, Charles C.
Janney, Benjamin S., Jr.
Jeanes, Joshua T.
Jenks, William P.
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Jones, Jacob P.
Jones, Isaac T.
Jones, William D.

Jones, William D.
Jones, Justice P.
Jones, William Pennel
Johnson, Israel H.
Johnson, Ellwood
Johnston, Robert S.
Justice, Philip S.

Kaighn, James E.
Kane, Thomas L.
Kelley, William D.
Kelly, Henry H.
Ketcham, John
Kiderlen, William L. J.
Kimber, Thomas
Kingsbury, Charles A., M. D.
Kinsey, William
Kirkpatrick, James A.
Kintzing, William F.
Kitchen, James, M. D.
Kneedler, J. S.
Knight, Edward C.
Knorr, G. Frederick
Klapp, Joseph, M. D.
Klein, John

Laing, Henry M.
Lambert, John
Latimer, Thomas
Leeds, Josiah W.
Lewis, Henry
Lewis, Edward
Lippincott, John
Lippincott, Joshua
Longstreth, J. Cooke
Lovering, Joseph S.
Lovering, Joseph S., Jr.
Ludwig, William C.

Lynch, William
Lytle, John J.

McCall, Peter
Meredith, William M.
Milliken, George
Myers, John B.
Morris, Isaac P.
Maris, John M.
Morris, Charles M.
Morris, Wistar
Morris, Caspar, M. D.
Morris, Anthony P.
Morris, Elliston P.
Montgomery, Richard R.
Mercer, Singleton A.
Mullen, William J.
Megarge, Charles
Martin, Abraham
McAllister, John, Jr.
McAllister, John A.
McAllister, William Y.
MacAdam, William R.
McAllister, T. H.
Marsh, Benjamin V.
Morton, Samuel C.
Merrill, William O. B.
Morrell, R. B.
Mellor, Thomas
Mitcheson, M. J.
Mead, John O.

Norris, Samuel
Neall, Daniel
Needles, William N.
Nesmith, Alfred
Nicholson, William
Neuman, L. C., Rev.

Ormsby, Henry
Orne, Benjamin

Purves, William
Parrish, Joseph, M. D.
Poulson, Charles A.
Perot, William S.
Perot, Francis
Perot, Charles P.
Perot, T. Morris
Patterson, Joseph
Patterson, Morris
Patterson, William C.
Potter, Alonzo, D. D., Rt. Rev.
Price, Eli K.
Price, Richard
Pearsall, Robert
Pitfield, Benjamin H.
Peters, James
Potts, Joseph
Parry, Samuel
Palmer, Charles
Perkins, Henry
Potts, Thomas P.

Quinn, John A.

Richardson, Richard
Richardson, William H.
Robins, Thomas
Robins, John, Jr.
Ritter, Abraham, Jr.
Rasin, Warner M.
Robb, Charles
Rehn, William L.
Rutter, Clement S.
Ruth, John

Roberts, Algernon S.
Ridgway, Thomas
Robinson, Thomas A.
Randolph, Philip P.
Rowland, A. G.
Richards, George K.

Smedley, Nathan
Shippen, William, M. D.
Scull, David
Schaffer, William L.
Scattergood, Joseph
Shannon, Ellwood
Sharpless, William P.
Simons, George W.
Smith, Nathan
Stokes, Samuel E.
Shoemaker, Benjamin H.
Speakman, Thomas H.
Starr, F. Ratchford
Saunders, McPherson
Stokes, Edward D.
Sloan, Samuel
Smith, Joseph P.
Stuart, George H.
Stewart, William S.
Stewart, James

Townsend, Edward
Taylor, Franklin
Taylor, John D.
Taylor, George W.
Trewendt, Theodore
Tredick, B. T.
Thomas, John
Taber, George
Troutman, George M.
Thornley, Joseph H.

Thissel, H. N.

Van Pelt, Peter, D. D.

Vaux, George

Wharton, Thomas F.

Wood, Horatio C.

Welsh, William

Welsh, Samuel

Welsh, John

Wetherill, John M.

Williamson, Passmore

White, John J.

Wainwright, William

Wright, Samuel

Wright, Isaac K.

Willets, Jeremiah

Wiegand, John

Wilstach, William P.

Williamson, Peter

Warner, Redwood F.

Walton, Coates

Williams, Jacob T.

Wilson, Ellwood, M. D.

Woodward, Charles W.

Whilldin, Alexander

Watt, John H.

Wickersham, Morris S.

Wetherill, John, Jr.

Way, J. Tunis

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- Senor Soldan, Peru, South America.
John S. Richards, Reading, Berks Co., Pennsylvania.
Hon. Townsend Haines, West Chester, Chester Co., Pennsylvania.
Hon. Andrew G. Curtin, Harrisburg, Dauphin Co., Pennsylvania.
Hon. Charles W. Higgins, Pottsville, Schuylkill Co., Pennsylvania.
Charles Lott, Lottsville, Warren Co., Pennsylvania.
Morris C. Jones, Bethlehem, Northampton Co., Pennsylvania.
Henry Eckroid, Muncy, Lycoming Co., Pennsylvania.
George Willits, Catawissa, Columbia Co., Pennsylvania.
Wm. A. Thomas, Bellefonte, Centre Co., Pennsylvania.
Dr. David, Copenhagen, Denmark, Europe.
Robert Smeal, Glasgow, Scotland.
Rev. E. C. Winis, New York.
Hon. John Princkle Jones, Reading, Berks Co., Pennsylvania.
Hon. John Nesbit Cunningham, Wilksbarre, Luzerne Co., Penna.
Hon. Warren J. Woodward, Reading, Berks Co., Pennsylvania.
Hon. Henry G. Long, Lancaster, Lancaster Co., Pennsylvania.
Hon. A. L. Hays, Lancaster, Lancaster Co., Pennsylvania.
Hon. John Peirson, Harrisburg, Dauphin Co., Pennsylvania.
Dr. John Atlee, Lancaster, Lancaster Co., Pennsylvania.
William J. Allinson, Burlington, New Jersey.
-

ARTICLE IV.

The Treasurer shall keep the moneys and securities, and pay all orders of the Society or of the Acting Committee, signed by the presiding officer and Secretary; and shall present a statement of the condition of the finances of the Society at each stated meeting thereof.

All bequests, donations, and life-subscriptions shall be safely invested; only the income thereof to be applied to the current expenses of the Society.

ARTICLE V.

The Acting Committee shall consist of the officers of the Society, ex-officio, and fifty other members. They shall visit the prison at least twice a month, inquire into the circumstances of the prisoners, and report such abuses as they shall discover, to the proper officers appointed to remedy them. They shall examine the influence of confinement on the morals of the prisoners. They shall keep regular minutes of their proceedings, which shall be submitted at every stated meeting of the Society; and shall be authorized to fill vacancies occurring in their own body, whether arising from death, or removal from the city, or from inability or neglect to visit the prisons in accordance with their regulations. They shall also have the sole power of electing new members.

ARTICLE VI.

Candidates for membership may be proposed at any meeting of the Society or of the Acting Committee; but no election shall take place within ten days after such nomination. Each member shall pay an annual contribution of two dollars; but the payment of twenty dollars at any one time shall constitute a life membership.

ARTICLE VII.

Honorary members may be elected at such times as the Society may deem expedient.

ARTICLE VIII.

The Society shall hold stated meetings on the *fourth* fifth day (Thursday) in the months called January, April, July, and October, of whom seven shall constitute a quorum.

ARTICLE IX.

No alterations of the Constitution shall be made, unless the same shall have been proposed at a stated meeting of the Society, held not less than a month previous to the adoption of such alterations. All questions shall be decided, where there is a division, by a majority of votes; in those where the Society is equally divided, the presiding officer shall have the casting vote.

OFFICERS OF THE SOCIETY.
1864.

PRESIDENT, JAMES J. BARCLAY.

VICE-PRESIDENTS, WILLIAM SHIPPEN, M. D.
JOSEPH R. CHANDLER.

TREASURER, EDWARD H. BONSALL.

SECRETARIES, JOHN J. LYTLE,
EDWARD TOWNSEND.

COUNSELLORS, HENRY J. WILLIAMS,
CHARLES GIBBONS.

Members of the Acting Committee.

Charles Ellis,
William S. Perot,
Thomas Latimer,
John M. Wetherill,
Abram C. Brown,
Benjamin H. Pitfield,
James E. Kaighn,
Alfred H. Love,
Jeremiah Willits,
William H. Burr,
George Taber,
William L. J. Kiderlen,
Mahlon H. Dickinson,
William Ingram,
James Peters,
Robert E. Evans,
Charles Palmer,
Charles P. Perot,
Abram Martin,
Wm. Armstrong, M. D.,
William Nicholson,
Charles W. Funk,
Philip P. Randolph,
Samuel Townsend,
Albert G. Roland,
Benj. H. Shoemaker,
Lewis C. Neuman,
Wm. Warner Caldwell,
Henry Perkins,
George M. Elkinton,
William R. MacAdam,
J. M. Corse, M. D.,
E. Griffin, M. D.,
William Hacker,
Isaac Barton,
J. H. Beckwith,
Thomas A. Robinson,
John H. Watt

JOHN H. VVATT,
George Milliken,
John Klein,
Theodore Trewendt.

Visiting Committee on the Eastern Penitentiary.

Edward H. Bonsall,
John J. Lytle,
Edward Townsend,
Abram C. Brown,
James E. Kaighn,
Alfred H. Love,
Jeremiah Willits,
William H. Burr,
George Taber,
William L. J. Kiderlen,
Mahlon H. Dickinson,
James Peters,
Robert E. Evans,
William R. MacAdam,
Charles Palmer,
William Nicholson,
Charles W. Funk,
Samuel Townsend,
Albert G. Roland,
Benj. H. Shoemaker,
William Hacker,
J. M. Corse, M. D.,
E. Griffin, M. D.,
Isaac Barton,
George Milliken,
J. H. Beckwith,
Theodore Trewendt.

Visiting Committee on the County Prison.

William Shippen, M. D.,
Charles Ellis,
William S. Perot,
Thomas Latimer,
John M. Wetherill,
Benjamin H. Pitfield,
William Ingram,
Charles P. Perot,
Abram Martin,
Wm. Armstrong, M. D.,
Philip P. Randolph,
Joseph R. Chandler,
L. C. Neuman,
Henry Perkins,
George M. Elkinton,
Wm. Warner Caldwell,
Thomas A. Robinson,
John Klein.

☞ WILLIAM J. MULLEN is Agent of the County Prison, appointed by the Inspectors, and acting under their direction, and also appointed by the Prison Society.

- Transcriber's Notes:

- The tables on pages 111 and 146 were changed to remove ditto marks.
- Missing or obscured punctuation was corrected.
- Typographical errors were silently corrected.
- Inconsistent spelling and hyphenation were made consistent only when a predominant form was found in this book.

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JANUARY 1864) ***

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